

FEDERAL REGISTER

VOLUME 31 • NUMBER 5

Saturday, January 8, 1966 • Washington, D.C.

Pages 245-282

Agencies in this issue—

Atomic Energy Commission
Census Bureau
Civil Aeronautics Board
Civil Service Commission
Commerce Department
Comptroller of the Currency
Consumer and Marketing Service
Customs Bureau
Federal Aviation Agency
Federal Deposit Insurance Corporation
Federal Power Commission
Federal Reserve System
Federal Trade Commission
Food and Drug Administration
Interstate Commerce Commission
National Park Service
Post Office Department
Securities and Exchange Commission

Detailed list of Contents appears inside.



Announcing a New Information Service

Beginning August 2, 1965, the General Services Administration inaugurated a new information service, the "Weekly Compilation of Presidential Documents." The service makes available transcripts of the President's news conferences, messages to Congress, public speeches and statements, and other Presidential materials released by the White House up to 5 p.m. of each Friday.

The *Weekly Compilation* was developed in response to many requests received by the White House and the Bureau of the Budget for a better means of distributing Presidential materials. Studies revealed that the existing method of circularization by means of mimeographed releases was failing to give timely notice to those Government officials who needed them most.

The General Services Administration believes that a systematic, centralized publication of Presidential items on a weekly basis will provide users with up-to-date information on Presidential policies and pronouncements. The service is being carried out by the Office of the Federal Register, which now publishes similar material in annual volumes entitled "Public Papers of the Presidents."

The *Weekly Compilation* carries a Monday dateline. It includes an Index of Contents on the first page and a Cumulative Index at the end. Other finding aids include lists of laws approved by the President and of nominations submitted to the Senate, and a checklist of White House releases.

The official distribution for the *Weekly Compilation of Presidential Documents* is governed by regulations published in the *FEDERAL REGISTER* dated July 31, 1965 (30 F.R. 9573; 1 CFR 32.40). Members of Congress and officials of the legislative, judicial, and executive branches who wish to receive this publication for official use should write to the Director of the Federal Register, stating the number of copies needed and giving the address for mailing.

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Area Code 202

Phone 963-3261

Published daily, Tuesday through Saturday (no publication on Sundays, Mondays, or on the day after an official Federal holiday), by the Office of the Federal Register, National Archives and Records Service, General Services Administration (mail address National Archives Building, Washington, D.C. 20408), pursuant to the authority contained in the Federal Register Act, approved July 26, 1935 (49 Stat. 500, as amended; 44 U.S.C., ch. 8B), under regulations prescribed by the Administrative Committee of the Federal Register, approved by the President (1 CFR Ch. I). Distribution is made only by the Superintendent of Documents, Government Printing Office, Washington, D.C. 20402.

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List of CFR Parts Affected

(Codification Guide)

The following numerical guide is a list of the parts of each title of the Code of Federal Regulations affected by documents published in today's issue. A cumulative list of parts affected, covering the current month to date appears at the end of each issue beginning with the second issue of the month.

A cumulative guide is published separately at the end of each month. The guide lists the parts and sections affected by documents published since January 1, 1966, and specifies how they are affected.

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Chapter I—Federal Aviation Agency

SUBCHAPTER C—AIRCRAFT

[Docket No. 6969; Amdt. 39-179]

PART 39—AIRWORTHINESS DIRECTIVES

Beechcraft Model BAK-109 Air Conditioners

A proposal to amend Part 39 of the Federal Aviation Regulations to include an airworthiness directive requiring replacement of the original compressor motor fan in Beechcraft Model BAK-109 Air Conditioners was published in 30 F.R. 13237.

Interested persons have been afforded an opportunity to participate in the making of the amendment. A commentator suggested that the serial numbers of affected air-conditioning units be used as a means of identification rather than the color of the fan blade. The color of the fan blades was used as a means of identification since all affected fan blades are aluminum colored and it is necessary only to remove the front cover of the unit to inspect the fan blade. Since the serial number placards of the subject units are located on the lower aft side, most installations would require the removal of the unit from the bulkhead in order to check the serial number. Therefore, no change has been made in the AD.

In consideration of the foregoing, and pursuant to the authority delegated to me by the Administrator (25 F.R. 6489), § 39.13 of Part 39 of the Federal Aviation Regulations is amended by adding the following new airworthiness directive:

BEECHCRAFT. Applies to all airplanes equipped with Model BAK-109 Air Conditioners.

Compliance required within the next 100 hours' time in service after the effective date of this AD unless already accomplished.

To prevent further failures of the compressor motor fan, replace the fan in accordance with Beech Service Bulletin No. 65-49 dated March 1965.

NOTE. The Beechcraft Model BAK-109 Air Conditioner is known to be installed in, but not limited to, Beech Models 18, 50, 65 Series; Douglas Model DC-3; Lockheed Model 18; Viscount Models 744, 745D, and 810 Series airplanes.

(Sec. 313(a), 601, and 603, Federal Aviation Act of 1958; 49 U.S.C. 1354(a), 1421, and 1423)

This amendment becomes effective February 10, 1966.

Issued in Washington, D.C., on January 4, 1966.

C. W. WALKER,
Acting Director,
Flight Standards Service.

[F.R. Doc. 66-257; Filed, Jan. 7, 1966; 8:48 a.m.]

SUBCHAPTER E—AIRSPACE

[Airspace Docket No. 64-EA-25]

PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

Alteration of Control Zone and Designation of Transition Area; Correction

On Pages 15272 and 15273 of the FEDERAL REGISTER for December 10, 1965, the Federal Aviation Agency published regulations altering the Columbus, Ohio, control zone and designating a Columbus, Ohio, transition area. Inadvertently, a phrase was omitted from the description of the control zone and coordinates of the transition area transposed.

Since this correction is minor in nature, notice and public procedure hereon are unnecessary and the amendment may be made effective immediately.

In view of the foregoing, the regulations are hereby adopted effective immediately upon publication as follows:

1. In § 71.171 of Part 71 of the Federal Aviation Regulations in the description of the Columbus, Ohio, control zone after the phrase, "within 2 miles each side of the" and before the phrase, "Lockbourne AFB 5-mile radius area", insert the phrase, "Lockbourne AFB northeast localizer course extending from the".

2. In § 71.181 of Part 71 of the Federal Aviation Regulations in the description of the Columbus, Ohio, transition area, delete the description of the 1,200 foot transition area and insert in lieu thereof the following:

40°27'23" N., 82°07'37" W. to 39°52'25" N., 82°13'00" W. to 39°40'00" N., 82°00'00" W. to 39°40'00" N., 81°47'00" W. to 39°00'00" N., 81°43'40" W. to 39°00'00" N., 83°00'00" W. to 38°45'00" N., 83°30'00" W. to 38°30'00" N., 83°18'15" W. to 38°30'00" N., 83°59'00" W. to 39°19'00" N., 84°00'00" W. to 39°05'00" N., 83°30'00" W. to 40°00'00" N., 83°15'00" W. to 40°30'00" N., 83°50'00" W. to 40°30'00" N., 83°10'00" W. to point of beginning.

(Sec. 307(a), Federal Aviation Act of 1958; 72 Stat. 749; 49 U.S.C. 1348)

Issued in Jamaica, N.Y., on December 23, 1965.

OSCAR BAKKE,
Director, Eastern Region.

[F.R. Doc. 66-224; Filed, Jan. 7, 1966; 8:45 a.m.]

[Airspace Docket No. 65-EA-41]

PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

Alteration, Designation Control Zones and Transition Areas

On page 13324 of the FEDERAL REGISTER for October 20, 1965, the Federal Aviation Agency published proposed regulations which would alter the Westover,

Mass., and Westfield, Mass., control zones, designate a 700-foot floor transition area over Westover AFB Chicopee Falls, Mass., Southbridge Airport, Southbridge, Mass., Barnes Airport, Westfield, Mass., Gardner Municipal Airport, Gardner, Mass., Dillant-Hopkins Airport, Keene, N.H., Orange Municipal Airport, Orange, Mass., and Jaffrey Municipal Airport, Jaffrey, N.H.; a 1,200-foot floor, Chicopee Falls, Mass., transition area.

Interested parties were given 45 days after publication in which to submit written data or views. All comments received were favorable.

In view of the foregoing, the proposed regulations are hereby adopted effective 0001 e.s.t. March 3, 1966.

(Sec. 307(a), Federal Aviation Act of 1958; 72 Stat. 749; 49 U.S.C. 1348)

Issued in Jamaica, N.Y., on December 23, 1965.

OSCAR BAKKE,
Director, Eastern Region.

1. Amend § 71.171 of Part 71 of the Federal Aviation Regulations so as to delete the description of the Westover, Mass., control zone and insert in lieu thereof:

WESTOVER, MASS.

Within a 5-mile radius of the center, 42°11'40" N., 72°32'15" W., Westover AFB, Chicopee Falls, Mass.; within 2 miles each side of the Westover ILS localizer NE course extending from the 5-mile radius zone to 10 miles NE of the OM; within 2 miles each side of Chicopee TACAN 028° radial extending from the 5-mile radius zone to 8 miles NE of the TACAN and within 2 miles each side of the centerline of Runway 23 extended 7 miles SW from the end of the runway.

2. Amend § 71.171 of Part 71 of the Federal Aviation Regulations so as to delete the description of the Westfield, Mass., control zone and insert in lieu thereof:

WESTFIELD, MASS.

Within a 5-mile radius of the center, 42°09'25" N., 72°42'50" W., of Barnes Airport, Westfield, Mass.; within 2 miles each side of the 189° bearing from the Westfield RBN, extending from the 5-mile radius zone to the RBN; within 2 miles each side of the centerline of Runway 33 extended 7.5 miles NW from the end of the runway and within 2 miles each side of the centerline of Runway 27 extended 7 miles W from the end of the runway excluding the portion within the Westover, Mass., control zone. This control zone shall be in effect from 0700 to 2300 hours, local time, daily.

3. Amend § 71.181 of Part 71 of the Federal Aviation Regulations so as to designate a 700- and 1,200-foot floor Chicopee Falls, Mass., transition area described as follows:

CHICOPEE FALLS, MASS.

That airspace extending upward from 700 feet above the surface within a 12-mile radius of the center, 42°11'40" N., 72°32'15" W., of Westover AFB, Chicopee Falls, Mass.; within 7 miles each side of the Chicopee Falls, Mass.,

ILS localizer NE course extending from the 12-mile radius area to 13 miles NE of the outer marker and within a 10-mile radius of the center, 42°09'25" N., 72°42'50" N., of Barnes Airport, Westfield, Mass., excluding that portion within the Hartford, Conn., transition area.

That airspace extending upward from 1,200 feet above the surface bounded by a line beginning at: 42°55'00" N., 72°00'00" W. to 42°05'00" N., 72°00'00" W. to 41°55'00" N., 71°59'00" W. to 42°02'00" N., 72°07'00" W. to 42°02'00" N., 73°16'00" W. to 43°11'00" N., 72°39'00" W. to 43°05'00" N., 72°13'00" W. to point of beginning.

4. Amend § 71.181 of Part 71 of the Federal Aviation Regulations so as to designate a 700-foot floor Keene, N.H., transition area described as follows:

KEENE, N.H.

That airspace extending upward from 700 feet above the surface bounded by a line beginning at: 43°01'00" N., 72°27'00" W. to 43°01'00" N., 72°13'00" W. to 42°55'00" N., 72°00'00" W. to 42°51'30" N., 71°54'00" W. to 42°28'00" N., 71°54'00" W. to 42°28'00" N., 72°27'00" W. to the point of beginning excluding that portion within the Boston, Mass., transition area.

5. Amend § 71.181 of Part 71 of the Federal Aviation Regulations so as to designate a 700-foot floor Southbridge, Mass., transition area described as follows:

SOUTHBRIDGE, MASS.

That airspace extending upward from 700 feet above the surface within a 4-mile radius of the center, 42°06'05" N., 72°02'20" W., of Southbridge Airport, Southbridge, Mass.; and within 2 miles each side of the Putnam VOR 315° radial extending from the 4-mile radius area to the VOR.

[F.R. Doc. 66-225; Filed, Jan. 7, 1966; 8:45 a.m.]

[Airspace Docket No. 65-EA-63]

PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

Designation of Transition Area

On Page 13544 of the FEDERAL REGISTER for October 23, 1965, the Federal Aviation Agency published proposed regulations which would designate a 700-foot floor transition area over Provincetown Municipal Airport, Provincetown, Mass.

Interested parties were given 30 days after publication in which to submit written data or views. No objections to the proposed regulations have been received.

In view of the foregoing, the proposed regulations are hereby adopted effective 0001 e.s.t., March 3, 1966.

(Sec. 307(a), Federal Aviation Act of 1958 (72 Stat. 749; 49 U.S.C. 1348))

Issued in Jamaica, N.Y., on December 23, 1965.

OSCAR BAKKE,
Director, Eastern Region.

1. Amend § 71.181 of Part 71 of the Federal Aviation Regulations so as to designate a 700-foot floor Provincetown, Mass., transition area described as follows:

PROVINCETOWN, MASS.

That airspace extending upward from 700 feet above the surface within a 4-mile radius of the center, 42°04'15" N., 70°13'15" W., of Provincetown Municipal Airport, Provincetown, Mass.; and within 2 miles each side of the Provincetown RBN 237° bearing extending from the 4-mile radius area to 8 miles SW of the RBN.

[F.R. Doc. 66-226; Filed, Jan. 7, 1966; 8:45 a.m.]

[Airspace Docket No. 65-EA-103]

PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

Revocation of Control Area Extensions

The Federal Aviation Agency proposes to amend § 71.165 of Part 71 of the Federal Aviation Regulations which would revoke the Chicopee Falls, Mass. (29 F.R. 17561), Newburgh, N.Y. (29 F.R. 17571) and Windsor Locks, Conn. (29 F.R. 17580), control area extensions. These extensions are no longer necessary because the airspace has now been absorbed into transition areas.

Since these amendments are minor in nature, notice and public procedure hereon are unnecessary.

In view of the foregoing, the proposed amendments are hereby adopted effective 0001 e.s.t., March 3, 1966, as follows:

1. Amend § 71.165 of Part 71 of the Federal Aviation Regulations so as to delete the Chicopee Falls, Mass., Newburgh, N.Y., and Windsor Locks, Conn., control area extensions.

(Sec. 307(a), Federal Aviation Act of 1958; 72 Stat. 749; 49 U.S.C. 1348)

Issued in Jamaica, N.Y., on December 23, 1965.

OSCAR BAKKE,
Director, Eastern Region.

[F.R. Doc. 66-227; Filed, Jan. 7, 1966; 8:45 a.m.]

[Airspace Docket No. 65-EA-104]

PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

Revocation of Control Area Extensions

The Federal Aviation Agency proposes to amend § 71.165 of Part 71 of the Federal Aviation Regulations which would revoke the Keene, N.H. (29 F.R. 17566), Lebanon, N.H. (29 F.R. 17567), Rutland, Vt. (29 F.R. 17575), and Springfield, Vt. (29 F.R. 17577), control area extensions. These extensions are no longer necessary because the airspace has now been absorbed into transition areas.

Since these amendments are minor in nature, notice and public procedure hereon are unnecessary.

In view of the foregoing, the proposed amendments are hereby adopted effective 0001 e.s.t., March 3, 1966, as follows:

1. Amend § 71.165 of Part 71 of the Federal Aviation Regulations so as to delete the Keene, N.H., Lebanon, N.H., Rutland, Vt., and Springfield, Vt., control area extensions.

(Sec. 307(a), Federal Aviation Act of 1958; 72 Stat. 749; 49 U.S.C. 1348)

Issued in Jamaica, N.Y., on December 23, 1965.

OSCAR BAKKE,
Director, Eastern Region.

[F.R. Doc. 66-228; Filed, Jan. 7, 1966; 8:45 a.m.]

[Airspace Docket No. 65-SW-28]

PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

Designation of Control Zone and Alteration of Transition Area

On August 10, 1965, a notice of proposed rule making was published in the FEDERAL REGISTER (30 F.R. 9955) stating that the Federal Aviation Agency proposed to alter the controlled airspace in the Gallup, N. Mex., terminal area.

Interested persons were afforded an opportunity to participate in the rule making through submission of comments. All comments received were favorable.

In consideration of the foregoing, Part 71 of the Federal Aviation Regulations is amended, effective 0001 e.s.t. March 31, 1966, as hereinafter set forth.

1. In § 71.171 (29 F.R. 17581) the following control zone is added:

GALLUP, N. MEX.

That airspace within a 5-mile radius of the McKinley County Airport (latitude 35°30'35" N., longitude 108°47'00" W.), within 2 miles each side of the Gallup VOR 232° and 061° radials, extending from the 5-mile radius zone to 6.5 miles SW of the VOR. This control zone is effective during the dates and times published in the Airman's Information Manual.

2. In § 71.181 (29 F.R. 17665) the Gallup, N. Mex., transition area is amended to read as follows:

GALLUP, N. MEX.

That airspace extending upward from 700 feet above the surface within an 8-mile radius of McKinley County Airport (latitude 35°30'35" N., longitude 108°47'00" W.); within 2 miles each side of the Gallup VOR 232° radial, extending from the 8-mile radius area to 8 miles SW of the VOR; and that airspace extending upward from 1,200 feet above the surface within an area bounded by a line beginning at latitude 35°47'30" N., longitude 108°34'00" W.; to latitude 35°25'00" N., longitude 108°38'30" W.; to latitude 35°15'00" N., longitude 109°00'00" W.; to latitude 35°25'00" N., longitude 109°07'00" W.; to latitude 35°52'00" N., longitude 108°47'00" W.; to point of beginning.

(Sec. 307(a), Federal Aviation Act of 1958; 49 U.S.C. 1348)

Issued in Fort Worth, Tex., December 30, 1965.

A. L. COULTER,
Acting Director, Southwest Region.

[F.R. Doc. 66-229; Filed, Jan. 7, 1966; 8:45 a.m.]

SUBCHAPTER F—AIR TRAFFIC AND GENERAL OPERATING RULES

[Reg. Docket No. 7051; Amdt. 459]

PART 97—STANDARD INSTRUMENT APPROACH PROCEDURES

Miscellaneous Amendments

The amendments to the standard instrument approach procedures contained herein are adopted to become effective when indicated in order to promote safety. The amended procedures supersede the existing procedures of the same classification now in effect for the airports specified therein. For the convenience of the users, the complete procedure is republished in this amendment indicating the changes to the existing procedures.

As a situation exists which demands immediate action in the interests of safety in air commerce, I find that compliance with the notice and procedure provisions of the Administrative Procedure Act is impracticable and that good cause exists for making this amendment effective within less than 30 days from publication.

In view of the foregoing and pursuant to the authority delegated to me by the Administrator (24 F.R. 5662), Part 97 (14 CFR Part 97) is amended as follows:

1. By amending the following low or medium frequency range procedures prescribed in § 97.11(a) to read:

LFR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	

PROCEDURE CANCELED, EFFECTIVE 6 JAN. 1966.

City, Martinsburg; State, W. Va.; Airport name, Martinsburg Municipal; Elev., 556'; Fac. Class., SBMRLZ; Ident., MB; Procedure No. 1, Amdt. 6; Eff. date, 8 Feb. 64; Sup. Amdt. No. 5; Dated, 31 Aug. 63

2. By amending the following automatic direction finding procedures prescribed in § 97.11(b) to read:

ADF STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Sherwood Int.	ATW RBN	Direct	2600	T-dn	300-1	300-1	200-1½
Little Chute Int.	ATW RBN	Direct	2600	C-dn	400-1	500-1	500-1½
Oshkosh VOR	ATW RBN	Direct	2600	S-dn-30	400-1	400-1	400-1
				A-dn*	NA	NA	NA

Procedure turn S side of crs, 134° Outbnd, 314° Inbnd, 2600' within 10 miles of Menasha Int.

Minimum altitude over Menasha Int on final approach crs, 2200'.

Crs and distance, Menasha Int to airport, 314°—4.2 miles.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 miles of RBN, make left-climbing turn to 2600' on 134° bearing from ATW "H" within 15 miles.

Note: Final approach from holding pattern at Menasha Int not authorized. Procedure turn required.

*Alternate minimums of 800-2 authorized for air carriers with weather reporting service at the airport.

MSA within 25 miles of facility: 000°-090°—3100'; 090°-180°—2700'; 180°-360°—2200'.

City, Appleton; State, Wis.; Airport name, Outagamie County (New); Elev., 918'; Fac. Class., MHW; Ident., ATW; Procedure No. 1, Amdt. Orig.; Eff. date, 6 Jan. 66

PROCEDURE CANCELED, EFFECTIVE 8 JAN. 1966.

City, Ashland; State, Ky.; Airport name, Ashland Boyd County; Elev., 546'; Fac. Class., MHW; Ident., AKY; Procedure No. 1, Amdt. 2; Eff. date, 30 Oct. 65; Sup. Amdt. No. 1; Dated, 20 July 63

Grimes Int.	EFW RBN	Direct	2800	T-dn	300-1	300-1	200-1½
FOD VOR	EFW RBN	Direct	2800	C-d	700-1	700-1	700-1½
				C-nf	700-2	700-2	700-2
				S-d-32	700-1	700-1	700-1
				S-n-32	700-1½	700-1½	700-1½
				A-dn	NA	NA	NA

Procedure turn E side of crs, 145° Outbnd, 325° Inbnd, 2500' within 10 miles.

Minimum altitude over facility on final approach crs, 1800'.

Facility on airport.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile after passing the EFW RBN, make right-climbing turn to 2500' on 145° bearing from the EFW RBN within 10 miles, then return to EFW RBN and hold SE on 325° crs Inbnd in 1-minute pattern with all turns to the right.

Night takeoffs and landings not authorized Runways 18/36.

\$Takeoff minimum of 400-1 required for all departures on Runway 32 due to 1350' elevator, 1.6 miles NW of airport.

MSA within 25 miles of facility: 000°-090°—2500'; 090°-180°—2400'; 180°-270°—2800'; 270°-360°—2500'.

City, Jefferson; State, Iowa; Airport name, Jefferson Municipal; Elev., 1048'; Fac. Class., MH; Ident., EFW; Procedure No. 1, Amdt. Orig.; Eff. date, 6 Jan. 66

ADF STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	

PROCEDURE CANCELED, EFFECTIVE 8 JAN. 1966.

City, Saginaw; State, Mich.; Airport name, Tri-City; Elev., 667'; Fac. Class., BMH; Ident., MBS; Procedure No. 1, Amdt. 10; Eff. date, 7 Sept. 63; Sup. Amdt. No. 9; Dated, 9 Dec. 61

Nemaha Int.	SLB RBn	Direct	2900	T-dn* C-d C-n* S-d-31 S-n-31* A-dn	300-1 700-1 700-2 700-1 700-1½ NA	300-1 700-1 700-2 700-1 700-1½ NA	200-½ 700-1½ 700-2 700-1 700-1½ NA
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Procedure turn E side of crs, 134° Outbnd, 314° Inbnd, 2900' within 10 miles.
Minimum altitude over facility on final approach crs, 2200'.
Facility on airport.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile of SLB RBn, make left-climbing turn to 2900' on 134° bearing from SLB RBn within 10 miles.
*Night takeoffs and landings authorized on Runways 13-31 only.
MSA's within 25 miles of the facility: 000°-360°-2900'.

City, Storm Lake; State, Iowa; Airport name, Storm Lake Municipal; Elev., 1460'; Fac. Class., MHW; Ident., SLB; Procedure No. 1, Amdt. Orig.; Eff. date, 6 Jan. 66

PBI VOR	LOM	Direct	1600	T-dn	300-1	300-1	200-½
Monet Int.	LOM	Direct	1600	C-dn	500-1	500-1	500-1½
Andrews Int.	LOM	Direct	2000	S-dn-0#	500-1	500-1	500-1
Shawnee Int. (final)*	LOM	Direct	1600	A-dn	800-2	800-2	800-2
Morgan Int.	LOM	Direct	1600				
Willy Int.	LOM	Direct	1600				
Pompano Int.	LOM	Direct	2000				

Procedure turn N side of crs, 273° Outbnd, 093° Inbnd, 1600' within 10 miles.
Minimum altitude over facility on final approach crs, 1600'.
Crs and distance, facility to airport, 093°-5.7 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 5.7 miles after passing LOM, climb to 1600' on crs of 093° within 20 miles of LOM.
*Shawnee Int may be used in lieu of procedure turn when authorized by Palm Beach approach control.
#Reduction below ¾ mile not authorized.
Other change: Deletes transition from PBI RBn.
MSA within 25 miles of facility: 000°-090°-1700'; 090°-180°-2100'; 180°-270°-2100'; 270°-360°-1300'.

City, West Palm Beach; State, Fla.; Airport name, Palm Beach International; Elev., 19'; Fac. Class., LOM; Ident., PB; Procedure No. 1, Amdt. 4; Eff. date, 6 Jan. 66; Sup. Amdt. No. 3; Dated, 1 Feb. 64

PROCEDURE CANCELED, EFFECTIVE 6 JAN. 1966.

City, West Palm Beach; State, Fla.; Airport name, Palm Beach International; Elev., 19'; Fac. Class., SABH; Ident., PBI; Procedure No. 2, Amdt. Orig.; Eff. date, 14 Dec. 63, or upon conversion of LFR to RBn

3. By amending the following very high frequency omnirange (VOR) procedures prescribed in § 97.11(c) to read:

VOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
				T-dn C-dn S-dn-24 A-dn	300-1 500-1 500-1 NA	300-1 500-1 500-1 NA	NA NA NA NA

Radar available thru Buffalo radar.
Procedure turn E side of crs, 045° Outbnd, 225° Inbnd, 2400' within 10 miles.
Minimum altitude over facility on final approach crs, 1500'.
Crs and distance, facility to airport, 225°-4.9 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.9 miles after passing BUF VOR, make a left-climbing turn and return to BUF VOR at 2600'. Hold BUF VOR, right turns, 1 minute, 287° Inbnd.
*All turns E side of crs, traffic restriction W.
MSA within 25 miles of facility: 080°-170°-2200'; 170°-260°-3900'; 260°-350°-2400'; 350°-080°-2200'.

City, Buffalo; State, N.Y.; Airport name, Buffalo Airpark; Elev., 680'; Fac. Class., H-BVORTAC; Ident., BUF; Procedure No. 1, Amdt. Orig.; Eff. date, 8 Jan. 66

VOR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
DHN VORTAC	SHA VOR	Direct	2000	T-dn	300-1	NA	NA
Hartford Int.	SHA VOR	Direct	2000	C-dn	400-1	NA	NA
Darlington Int.	SHA VOR	Direct	2000	S-dn-6L and R.	*400-1	NA	NA
OZ LOM	SHA VOR	Direct	2000	A-dn	NA	NA	NA
OZR VOR	SHA VOR	Direct	2000				
CEW VORTAC	SHA VOR	Direct	2000				
Rutledge Int.	SHA VOR	Direct	2100				
Andalusia Int.	SHA VOR	Direct	2000				

Radar available.
 Procedure turn N side of crs, 240° Outbnd, 060° Inbnd, 1400' within 10 miles. Procedure turn nonstandard due to Cairns AAF.
 Minimum altitude over facility on final approach crs, 1400'.
 Crs and distance, facility to Runway 6L, 060°—2 miles; to Runway 6R, 064°—2 miles.
 If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 2 miles after passing SHA VOR, turn left, climb to 2000' on R 280°, SHA VOR within 20 miles.
 NOTES: (1) Authorized for military use only except by prior arrangement. (2) Procedure authorized for rotary wing aircraft only.
 *400-1/2 authorized with operative high-intensity runway lights.
 MSA within 25 miles of facility: 000°-360°—1800'.

City, Fort Rucker; State, Ala.; Airport name, Shell AHP; Elev., 400'; Fac. Class., T-VORW; Ident., SHA; Procedure No. 1, Amdt. Orig.; Eff. date, 6 Jan. 66

				T-d#	700-2	700-2	NA
				C-d#	1100-2	1100-2	NA
				S-d	NA	NA	NA
				A-d	NA	NA	NA

Procedure turn S side of crs, 336° Outbnd, 156° Inbnd, 4000' within 10 miles.
 Minimum altitude over facility on final approach crs, 4000'.
 Crs and distance, facility to airport, 156°—10 miles.
 If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 10 miles after passing PSB VOR, make right-climbing turn to 4000', proceed direct to PSB VOR. Hold NW, R 308°, 1-minute right turns.
 CAUTION: 2100' terrain, 2.5 miles S of airport.
 *Advance notice required for operation of runway lights.
 MSA within 25 miles of the facility: 000°-360°—3700'.

City, State College; State, Pa.; Airport name, State College Air Depot; Elev., 1200'; Fac. Class., H-BVORTAC; Ident., PSB; Procedure No. 1, Amdt. Orig.; Eff. date, 8 Jan. 66

Mansfield Int.	CMI VOR	Direct	2700	T-d	300-1	300-1	300-1
				C-d	800-1	800-1	800-1 1/2
				Following minimums apply for DME equipped aircraft and Ilini DME Fix identified:			
				C-d	500-1	500-1	500-1 1/2
				A-dn	NA	NA	NA

Procedure turn W side of crs, 207° Outbnd, 027° Inbnd, 2300' within 10 miles.
 Minimum altitude over facility on final approach crs, 2300'.
 Crs and distance, facility to airport, 027°—7.4 miles.
 If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 7.4 miles after passing CMI VOR, make climbing right turn and return to the CMI VOR at 2300'.
 NOTE: No weather service.
 MSA within 25 miles of facility: 000°-090°—2300'; 090°-180°—2000'; 180°-270°—2300'; 270°-360°—2800'.

City, Urbana; State, Ill.; Airport name, Ilini; Elev., 735'; Fac. Class., BVORTAC; Ident., CMI; Procedure No. 1, Amdt. Orig.; Eff. date, 6 Jan. 66

4. By amending the following terminal very high frequency omnirange (TerVOR) procedures prescribed in § 97.13 to read:

TERMINAL VOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.
 If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Karen Int.	EST VOR	Direct	2800	T-dn*	300-1	300-1	200-1 1/2
				C-dn	700-1	700-1	700-1 1/2
				C-n*	700-1 1/2	700-1 1/2	700-2
				S-dn-34*	700-1	700-1	700-1
				A-dn	NA	NA	NA

Procedure turn E side of crs, 168° Outbnd, 348° Inbnd, 2800' within 10 miles.
 Minimum altitude over facility on final approach crs, 2000'.
 Facility on airport.
 If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile of EST VOR, make right-climbing turn to 2800' on R 168° of EST VOR within 10 miles.
 *Night takeoffs and landings authorized on Runways 16, 34 only.
 MSA's within 25 miles of the facility, 000°-360°—3000'.

City, Estherville; State, Iowa; Airport name, Estherville Municipal; Elev., 1317'; Fac. Class., T-VOR; Ident., EST; Procedure No. TerVOR-34, Amdt. Orig.; Eff. date, 6 Jan. 66

RULES AND REGULATIONS

TERMINAL VOR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Chilton Int.	MTW VOR	Direct	2200	T-dn	300-1	300-1	200-1/2
Franklin Int.	MTW VOR	Direct	2200	Minimums when control zone effective:			
Larrabee Int.	MTW VOR	Direct	2100	C-d	700-1	700-1 1/2	700-1 1/2
Green Bay VOR	MTW VOR	Direct	3000	C-n	700-2	700-2	700-2
				S-dn-17	700-1	700-1	700-1
				A-dn	800-2	800-2	800-2
				Minimums when control zone not effective:			
				C-d	800-1	800-1 1/2	800-1 1/2
				C-n	800-2	800-2	800-2
				S-dn-17	800-1	800-1	800-1
				A-dn	NA	NA	NA

Procedure turn W side of crs, 342° Outbnd, 162° Inbnd, 2100' within 10 miles.

Minimum altitude over facility on final approach crs, 1300'.

Facility on airport. Breakoff point to runway, 170°—0.5 mile.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile of VOR, climb to 2100' southbound on R 162° and return to VOR.

NOTE: Altimeter setting from Green Bay FSS during hours control zone effective.

*These minimums apply at all times for those air carriers with weather reporting service.

MSA within 25 miles of facility: 000°-090°—1900'; 090°-180°—2000'; 180°-270°—2400'; 270°-360°—3100'.

City, Manitowoc; State, Wis.; Airport name, Manitowoc Municipal; Elev., 647'; Fac. Class., BVOR; Ident., MTW; Procedure No. TerVOR-17, Amdt. Orig.; Eff. date, 6 Jan. 66

Chilton Int.	MTW VOR	Direct	2200	T-dn	300-1	300-1	200-1/2
Franklin Int.	MTW VOR	Direct	2200	Minimums when control zone effective:			
Larrabee Int.	MTW VOR	Direct	1900	C-d	700-1	700-1 1/2	700-1 1/2
Green Bay VOR	MTW VOR	Direct	3000	C-n	700-2	700-2	700-2
				S-dn-35	700-1	700-1	700-1
				A-dn	800-2	800-2	800-2
				Minimums when control zone not effective:			
				C-d	800-1	800-1 1/2	800-1 1/2
				C-n	800-2	800-2	800-2
				S-dn-35	800-1	800-1	800-1
				A-dn	NA	NA	NA

Procedure turn W side of crs, 175° Outbnd, 355° Inbnd, 1900' within 10 miles.

Minimum altitude over facility on final approach crs, 1300'.

Facility on airport. Breakoff point to runway, 350°—0.5 mile.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile of VOR, climb 2100' northbound on R 355° and return to VOR.

NOTE: Altimeter setting from Green Bay FSS during hours control zone not effective.

*These minimums apply at all times for those air carriers with weather reporting service.

MSA within 25 miles of facility: 000°-090°—1900'; 090°-180°—2000'; 180°-270°—2400'; 270°-360°—3100'.

City, Manitowoc; State, Wis.; Airport name, Manitowoc Municipal; Elev., 647'; Fac. Class., BVOR; Ident., MTW; Procedure No. TerVOR-35, Amdt. Orig.; Eff. date, 6 Jan. 66

Cleo Int.	MKT VOR	Direct	2500	Minimums when control zone effective:			
				T-dn	300-1	300-1	200-1/2
				C-d	600-1	700-1	700-1 1/2
				C-n	600-2	700-2	700-2
				S-dn-32	600-1	600-1	600-1
				A-dn	800-2	800-2	800-2
				Minimums when control zone not effective:			
				T-dn	300-1	300-1	200-1/2
				C-d	800-1	800-1	800-1 1/2
				C-n	800-2	800-2	800-2
				S-dn-32	800-1	800-1	800-1
				A-dn	NA	NA	NA

Procedure turn E side of crs, 142° Outbnd, 322° Inbnd, 2500' within 10 miles.

Minimum altitude over facility on final approach crs, 1600'.

Facility on airport.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile of MKT VOR, make immediate left turn, climbing to 2500' on R 142° within 10 miles. Return to VOR and hold SE on R 142°.

%When weather is below 500-1 and the intended route of flight is northbound, aircraft departing Runway 32, make left-climbing turn to 2000' prior to departing on crs, aircraft departing Runway 3, make right-climbing turn to 2000' prior to departing on crs due to 1508' tower, 2.8 miles NW and 1373' tower, 1.6 miles NE of airport.

*These minimums apply to all times for those air carriers with approved weather reporting service.

MSA within 25 miles of facility: 000°-180°—2400'; 180°-270°—3200'; 270°-360°—2600'.

City, Mankato; State, Minn.; Airport name, Mankato Municipal; Elev., 1005'; Fac. Class., BVOR; Ident., MKT; Procedure No. TerVOR-32, Amdt. 3; Eff. date, 6 Jan. 66; Sup. Amdt. No. 2; Dated, 20 Feb. 65

TERMINAL VOR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
BIB VOR	MTO VOR	Direct	2500	Minimums when control zone effective:			
Arcola Int.	MTO VOR	Direct	2400	T-dn	300-1	300-1	200-1½
Casey Int.	MTO VOR	Direct	2500	C-dn	600-1	600-1	600-1
				S-dn-6	600-1	600-1	600-1
				A-dn	800-2	800-2	800-2
				Following minimums apply if Etna Int received:			
				C-dn	400-1	500-1	500-1½
				S-dn-6	400-1	400-1	400-1
				Minimums when control zone not effective:			
				C-dn	700-1	700-1	700-1½
				S-dn-6	700-1	700-1	700-1
				Following minimums apply if Etna Int received:			
				C-dn	500-1	500-1	500-1½
				S-dn-6	500-1	500-1	500-1
				A-dn	NA	NA	NA

Procedure turn N side of crs, 226° Outbnd, 046° Inbnd, 2200' within 10 miles.
Minimum altitude over facility on final approach crs, 1300'.
Facility on airport. Breakoff point to runway, 053°—0.5 mile.
Crs and distance, Etna Int to airport, 046°—3.4 miles; Etna Int to VOR, 046°—3.5 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile of VOR, climb to 2200', hold SE of VOR on R 226° Inbnd, crs, 046°, left turns.
NOTE: Altimeter setting from CMI FSS during hours control zone not effective.
*These minimums apply at all times for those air carriers with approved weather reporting service.
MSA within 25 miles of facility: 000°—180°—2200'; 180°—360°—2100'.

City, Mattoon-Charleston; State, Ill.; Airport name, Coles County Memorial; Elev., 721'; Fac. Class., T-BVOR; Ident., MTO; Procedure No. Ter VOR-6, Amdt. Orig.; Eff. date, 6 Jan. 66

BIB VOR	MTO	Direct	2400	Minimums when control zone effective:			
Arcola Int.	MTO VOR	Direct	2400	T-dn	300-1	300-1	200-1½
Casey Int.	MTO VOR	Direct	2500	C-dn	500-1	500-1	500-1½
				A-dn	800-2	800-2	800-2
				Minimums when control zone not effective:			
				C-dn	600-1	600-1	600-1½
				A-dn	NA	NA	NA

Procedure turn N side of crs, 057° Outbnd, 237° Inbnd, 2200' within 10 miles.
Minimum altitude over facility on final approach crs, 1200'.
Facility on airport.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile of VOR, climb to 2200' and return to VOR.
Hold NE of VOR, R 057°, 237° Inbnd, right turns.
NOTE: Altimeter setting from CMI FSS during hours control zone not effective.
*These minimums apply at all times for those air carriers with approved weather reporting service.
MSA within 25 miles of facility: 000°—180°—2200'; 180°—360°—2100'.

City, Mattoon-Charleston; State, Ill.; Airport name, Coles County Memorial; Elev., 721'; Fac. Class., T-BVOR; Ident., MTO; Procedure No. TerVOR R-057, Amdt. Orig.; Eff. date, 6 Jan. 66

HCT VOR	MCK VOR	Direct	4700	T-dn	300-1	300-1	300-1
				Minimums when control zone effective:			
				C-dn	800-1	800-1	800-1½
				S-dn-12	800-1	800-1	800-1
				A-dn	1000-2	1000-2	1000-2
				Minimums when control zone not effective:			
				C-dn	1000-1	1000-1	1000-1½
				S-dn-12	1000-1	1000-1	1000-1
				A-dn	NA	NA	NA

Procedure turn N side of crs, 308° Outbnd, 128° Inbnd, 4000' within 10 miles.
Minimum altitude over facility on final approach crs, 3570'.
Facility on airport; crs and distance; breakoff point to Runway 12, 118°—0.74 mile.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile after passing MCK VOR, climb to 4000' on MCK R 109° within 10 miles, make left turn and return to MCK VOR.
Hold on MCK R 109° right turns, 1 minute.
CAUTION: Four (4) towers, highest 3049' located 2.5 miles W of airport.
NOTES: (1) Altimeter setting from LBF FSS during hours control zone not effective. (2) Lights operating Runways 12/30 only.
*These minimums apply at all times for those air carriers with approved weather reporting service.
*When instrument flight planned to SW, W, or NW, after takeoff make right or left turn as appropriate, climb on MCK R 060°, depart MCK VOR, no less than 4000' on crs.
MSA within 25 miles of facility: 045°—135°—4000'; 135°—225°—4500'; 225°—315°—4100'; 315°—045°—4000'.

City, McCook; State, Nebr.; Airport name, McCook Municipal; Elev., 2570'; Fac. Class., L-BVOR (State owned); Ident., MCK; Procedure No. TerVOR-12, Amdt. 1; Eff. date, 6 Jan. 66; Sup. Amdt. No. Orig.; Dated, 31 July 65

RULES AND REGULATIONS

TERMINAL VOR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
HCT VOR.....	MCK VOR.....	Direct.....	4700	T-dn*.....	300-1	300-1	300-1
				Minimums when control zone effective:			
				C-dn.....	500-1	500-1	500-1½
				S-dn-30.....	500-1	500-1	500-1
				A-dn.....	800-2	800-2	800-2
				Minimums when control zone not effective:			
				C-dn.....	700-1	700-1	700-1½
				S-dn-30.....	700-1	700-1	700-1
				A-dn.....	NA	NA	NA

Procedure turn N side of crs, 109° Outbnd, 289° Inbnd, 3800' within 10 miles.

Minimum altitude over facility on final approach crs, 3270'.

Facility on airport; crs and distance; break off point to Runway 30, 298°—0.81 mile.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile after passing MCK VOR, make right turn climbing to 4000' on MCK R 109° within 10 miles, make left turn and return to MCK VOR.

NOTES: (1) Altimeter setting from LBF FSS during hours control zone not effective. (2) Lights operating Runways 12/30 only.

CAUTION: Four (4) towers, highest 3049' located 2.5 miles W of airport.

& These minimums apply at all times for those air carriers with approved weather reporting service.

*When instrument flight planned to SW, W, or NW, after takeoff make right or left turn as appropriate, climb on MCK R 060°, depart MCK VOR no less than 4000' on crs.

MSA within 25 miles of facility: 045°-135°—4000'; 135°-225°—4500'; 225°-315°—4100'; 315°-045°—4000'.

City, McCook; State, Nebr.; Airport name, McCook Municipal; Elev., 2570'; Fac. Class., L-BVOR (State-owned); Ident., MCK; Procedure No. TerVOR-30, Amdt. 1; Eff. date, 6 Jan. 66; Sup. Amdt. No. Orig.; Dated, 31 July 65

				T-dn.....	300-1	300-1	200-1½
				C-dn.....	500-1	500-1	500-1½
				S-dn-5*.....	500-1	500-1	500-1
				A-dn.....	800-2	800-2	800-2
				Following minimums authorized for VOR and DME equipped aircraft and 3-mile DME Fix identified:			
				C-dn.....	400-1	500-1	500-1½
				S-dn-5*.....	400-1	400-1	400-1

Procedure turn S side of crs, 236° Outbnd, 056° Inbnd, 2200' within 10 miles.

Minimum altitude over facility on final approach crs, 1167'.

Crs and distance, breakoff point to airport, 049°—0.6 mile.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile after passing MBS VOR, climb to 2200' on MBS VOR, R 056° and return to MBS VOR.

NOTE: When authorized by ATC, DME may be used via 8-mile DME Arc at 2600' altitude between MBS VOR, R 115° clockwise to R 360° to position aircraft for straight-in approach with the elimination of the procedure turn.

*500-¾ authorized with operative REIL or high-intensity runway lights, except for 4-engine turbojets.

*400-¾ authorized with operative REIL or high-intensity runway lights, except for 4-engine turbojets.

MSA within 25 miles of facility: 000°-090°—2200'; 090°-180°—2700'; 180°-270°—2600'; 270°-360°—1900'.

City, Saginaw; State, Mich.; Airport name, Tri-City; Elev., 667'; Fac. Class., BVORTAC; Ident., MBS; Procedure No. TerVOR-5, Amdt. 4; Eff. date, 8 Jan. 66; Sup. Amdt. No. 3; Dated, 13 Nov. 65

				T-dn.....	300-1	300-1	200-1½
				C-dn.....	600-1	600-1	600-1½
				S-dn-14.....	600-1	600-1	600-1
				A-dn.....	800-2	800-2	800-2
				Following minimums authorized for VOR and DME equipped aircraft and 3-mile DME Fix identified:			
				C-dn.....	400-1	500-1	500-1½
				S-dn.....	400-1	400-1	400-1

Procedure turn W side of crs, 313° Outbnd, 133° Inbnd, 2200' within 10 miles.

Minimum altitude over facility on final approach crs, 1267'.

Crs and distance, facility to airport, 139°—0.28 mile.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, proceed to facility, climb to 2200' on MBS VOR, R 170° and return to MBS VOR.

NOTE: When authorized by ATC, DME may be used via 8-mile DME Arc at 2200' altitude between MBS VOR, R 190° clockwise to R 070° to position aircraft for straight-in approach with the elimination of the procedure turn.

MSA within 25 miles of facility: 000°-090°—2200'; 090°-180°—2700'; 180°-270°—2600'; 270°-360°—1900'.

City, Saginaw; State, Mich.; Airport name, Tri-City; Elev., 667'; Fac. Class., BVORTAC; Ident., MBS; Procedure No. TerVOR-14, Amdt. 2; Eff. date, 8 Jan. 66; Sup. Amdt. No. 1; Dated, 7 Sept. 63

				T-dn.....	300-1	300-1	200-1½
				C-dn.....	700-1	700-1	700-1½
				S-dn-23*.....	700-1	700-1	700-1
				A-dn.....	800-2	800-2	800-2
				Following minimums authorized for VOR and DME equipped aircraft and 3-mile DME Fix identified:			
				C-dn.....	400-1	500-1	500-1½
				S-dn-23*.....	400-1	400-1	400-1

Procedure turn E side of crs, 033° Outbnd, 213° Inbnd, 2200' within 10 miles.

Minimum altitude over facility on final approach crs, 1367'.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished proceed to facility, climb to 2200' on MBS VOR, R 215° and return to MBS VOR.

NOTE: When authorized by ATC, DME may be used via 8-mile DME Arc at 2600' altitude between MBS VOR, R 270° clockwise to R 150° to position aircraft for straight-in approach with the elimination of the procedure turn.

*Reduction below 1 mile not authorized for high-intensity runway lights.

MSA within 25 miles of facility: 000°-090°—2200'; 090°-180°—2700'; 180°-270°—2600'; 270°-360°—1900'.

City, Saginaw; State, Mich.; Airport name, Tri-City; Elev., 667'; Fac. Class., BVORTAC; Ident., MBS; Procedure No. TerVOR-23, Amdt. 5; Eff. date, 8 Jan. 66; Sup. Amdt. No. 4; Dated, 10 Apr. 65

5. By amending the following very high frequency omnirange-distance measuring equipment (VOR/DME) procedures prescribed in § 97.15 to read:

VOR/DME STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
				T-dn#.....	300-1	300-1	200-1½
				C-dn.....	1000-3	1000-3	1000-3
				If aircraft equipped with operating DME and 8-mile DME Fix is identified, the following minimums are authorized:			
				C-dn.....	500-1	500-1	500-1½
				S-d-14#.....	500-1	500-1	500-1
				A-dn*.....	NA	NA	NA

Procedure turn W side of crs, 330° Outbnd, 150° Inbnd, 1500' within 10 miles.
Minimum altitude over facility on final approach crs, 1500'.
Crs and distance, facility to airport, 150°—12.5 miles; 8-mile DME Fix to airport, 4.5 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 12.5 miles after passing VOR or 12.5-DME Fix, turn right, climb to 1500' on R 165°, VOR within 15 miles, return to VOR. Hold NW, 330° Outbnd, 150° Inbnd, 1-minute right turns.
NOTES: Pilot will close IFR flight plan with Vero Beach radio upon reaching contact conditions and when completion of approach is assured.
*Night takeoffs and landings authorized on Runways 9-27 only.
Weather information not available.
MSA within 25 miles of the facility: 000°-360°—1400'.

City, Fort Pierce; State, Fla.; Airport name, St. Lucie County; Elev., 24'; Fac. Class., H-BVORTAC; Ident., VOR; Procedure No. VOR/DME No. 1, Amdt. Orig.; Eff. date, 6 Jan. 66

				T-dn.....	300-1	300-1	200-1½
				C-dn.....	400-1	500-1	500-1½
				S-dn-23.....	400-1	400-1	400-1
				A-dn.....	800-2	800-2	800-2

Radar available.
Procedure turn W side of crs, 037° Outbnd, 217° Inbnd, 2400' within 10 miles of Atlantic 7-mile DME Fix.
Minimum altitude over Atlantic 7-mile DME Fix on final approach crs, 1900'.
Crs and distance, facility to airport, 217°—2.9 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished upon reaching 4.1-mile DME Fix, R 037°, climb to 2500', via R 037°/217°, GSO within 20 miles, or when directed by ATC, climb to 2500' and proceed to Thomas Int via GSO, R 221°.
MSA within 25 miles of facility: 000°-090°—3500'; 090°-180°—3100'; 180°-270°—3400'; 270°-360°—5100'.

City, Greensboro; State, N.C.; Airport name, Greensboro-High Point-Winston Salem; Elev., 920'; Fac. Class., BVORTAC; Ident., GSO; Procedure No. VOR/DME No. 1, Amdt. Orig.; Eff. date, 8 Jan. 66

				T-dn.....	300-1	300-1	200-1½
				C-dn.....	400-1	500-1	500-1½
				S-dn-9*.....	400-1	400-1	400-1
				A-dn.....	800-2	800-2	800-2

Procedure turn N side of crs, 275° Outbnd, 095° Inbnd, 1500' within 10 miles.
Minimum altitude over facility on final approach crs, 800'.
Crs and distance, facility to airport, 095°—2.8 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 2.8 miles after passing VOR, climb to 1500' on FBI VOR R 095° within 20 miles of VOR.
NOTES: When authorized by ATC, Palm Beach DME 10-mile orbit may be used from R 181° clockwise thru R 275° at 2000' and from R 275° clockwise thru R 358° at 1500' to Crowfoot Int in order to position aircraft for a straight-in approach with the elimination of the procedure turn.
Other change: Deletes transition from PBL LOM.
*400-3½ authorized, except for 4-engine turbojet aircraft, with operative high-intensity runway lights.
#400-1½ authorized, except for 4-engine turbojet aircraft, with operative ALS.
MSA within 25 miles of facility: 000°-090°—1700'; 090°-180°—1400'; 180°-270°—2100'; 270°-360°—1300'.

City, West Palm Beach; State, Fla.; Airport name, Palm Beach International; Elev., 19'; Fac. Class., BVORTAC; Ident., FBI; Procedure No. VOR/DME No. 1, Amdt. 1; Eff. date, 6 Jan. 66; Sup. Amdt. No. Orig.; Dated, 3 Apr. 65

RULES AND REGULATIONS

6. By amending the following instrument landing system procedures prescribed in § 97.17 to read:

ILS STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
PBI VOR	LOM	Direct	1600	T-dn	300-1	300-1	200-1½
Morgan Int.	LOM	Direct	1600	C-dn	*400-1	500-1	500-1½
Monet Int.	LOM	Direct	1600	S-dn-9*	200-1½	200-1½	200-1½
Andrews Int.	LOM	Direct	2000	A-dn	600-2	600-2	600-2
Shawnee Int. (final)#	LOM	Direct	1600				
Willy Int.	LOM	Direct	1600				
Pompano Int.	LOM	Direct	2000				

Procedure turn N side of crs, 273° Outbnd, 093° Inbnd, 1600' within 10 miles.

Minimum altitude at glide slope interception Inbnd, 1600'.

Altitude of glide slope and distance to approach end of runway at OM, 1560'—5.7 miles; at MM, 217'—0.6 mile.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, climb to 1600' on E crs of ILS LCZR within 20 miles of LOM.

Other change: Deletes transition from PBI RBN.

*600-2 required when glide slope not utilized.

#Shawnee Int may be used in lieu of procedure turn when authorized by Palm Beach approach control.

City, West Palm Beach; State, Fla.; Airport name, Palm Beach International; Elev., 19'; Fac. Class., ILS; Ident, I-PBI; Procedure No. ILS-9, Amdt. 5; Eff. date, 6 Jan. 66; Sup. Amdt. No. 4; Dated, 1 Feb. 64

7. By amending the following radar procedures prescribed in § 97.19 to read:

RADAR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If a radar instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below. Positive identification must be established with the radar controller. From initial contact with radar to final authorized landing minimums, the instructions of the radar controller are mandatory except when (A) visual contact is established on final approach at or before descent to the authorized landing minimums, or (B) at pilot's discretion if it appears desirable to discontinue the approach, except when the radar controller may direct otherwise prior to final approach, a missed approach shall be executed as provided below when (A) communication on final approach is lost for more than 5 seconds during a precision approach, or for more than 30 seconds during a surveillance approach; (B) directed by radar controller; (C) visual contact is not established upon descent to authorized landing minimums; or (D) if landing is not accomplished.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
040° ----- 185° -----	185° ----- 040° -----	Within: 20 miles ----- 20 miles -----	1900 1800	Surveillance approach			
				T-dn-----	300-1	300-1	NA
				C-dn-----	1000-2	1000-2	*NA
				S-dn-----	NA	NA	NA
				A-dn*-----	NA	NA	NA

All bearings and distances are from radar antenna site with sector azimuths progressing clockwise. Radar control must provide 3 miles or 1000' vertical separation from following towers: 1349°—9.7 miles NE; 1340°—8 miles NE; 975°—9.2 miles NE; and 1333°—8.7 miles NE.

Radar azimuths are clockwise with distance and altitudes based on antenna located at Memphis Metropolitan Airport.

Aircraft on radar vector to West Memphis Airport in a sector from 000° to 300° from West Memphis Airport may descend to 1200' after passing 5-mile Radar Fix to West Memphis Airport.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished at 0-mile Radar Fix, make left turn, climb to 2000', proceed direct to Bruins (BSA) MHW and hold W, 256° bearing, 076° Inbnd, right turns, 1-minute pattern.

NOTE: Minimum radar vectoring altitude 1700' authorized within 5- to 7-mile radius of West Memphis, Ark., Airport.

CAUTION: (1) Altimeter setting removed from Memphis Metropolitan Airport. (2) Aircraft will cancel IFR with MEM APC or MEM FSS prior to landing or upon reaching VFR conditions. (3) Aircraft will not take off under IFR conditions without prior ATC approval.

*Weather service not available at this airport.

City, West Memphis; State, Ark.; Airport name, West Memphis Municipal; Elev., 212'; Fac. Class. and Ident., Memphis Radar; Procedure No. 1, Amdt. 1; Eff. date, 6 Jan. 66; Sup. Amdt. No. Orig.; Dated, 18 Sept. 65

These procedures shall become effective on the dates specified therein.

(Secs. 307(c), 313(a), 601, Federal Aviation Act of 1958; 49 U.S.C. 1348 (c), 1354(a), 1421; 72 Stat. 749, 752, 775)

Issued in Washington, D.C., on December 6, 1965.

C. W. WALKER,
Acting Director, Flight Standards Service.

[F.R. Doc. 66-290; Filed, Jan. 7, 1966; 8:48 a.m.]

Title 7—AGRICULTURE

Chapter IX—Consumer and Marketing Service (Marketing Agreements and Orders; Fruits, Vegetables, Nuts), Department of Agriculture

[Navel Orange Reg. 95]

PART 907—NAVEL ORANGES GROWN IN ARIZONA AND DESIGNATED PART OF CALIFORNIA

Limitation of Handling

§ 907.395 Navel Orange Regulation 95.

(a) *Findings.* (1) Pursuant to the marketing agreement, as amended, and Order No. 907, as amended (7 CFR Part 907), regulating the handling of Navel oranges grown in Arizona and designated part of California, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601-674), and upon the basis of the recommendations and information submitted by the Navel Orange Administrative Committee, established under the said amended marketing agreement and order, and upon other available information, it is hereby found that the limitation of handling of such Navel oranges, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule-making procedure, and postpone the effective date of this section until 30 days after publication hereof in the FEDERAL REGISTER (5 U.S.C. 1001-1011) because the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient, and a reasonable time is permitted, under the circumstances, for preparation for such effective time; and good cause exists for making the provisions hereof effective as hereinafter set forth. The committee held an open meeting during the current week, after giving due notice thereof, to consider supply and market conditions for navel oranges and the need for regulation; interested persons were afforded an opportunity to submit information and views at this meeting; the recommendation and supporting information for regulation during the period specified herein were promptly submitted to the Department after such meeting was held; the provisions of this section, including its effective time, are identical with the aforesaid recommendation of the committee, and information concerning such provisions and effective time has been disseminated among handlers of such navel oranges; it is necessary, in order to effectuate the declared policy of the act, to make this section effective during the period herein specified; and compliance with this section will not require any special preparation on the part of persons subject hereto which cannot be completed on or before the

effective date hereof. Such committee meeting was held on January 6, 1966.

(b) *Order.* (1) The respective quantities of Navel oranges grown in Arizona and designated part of California which may be handled during the period beginning at 12:01 a.m., P.s.t., January 9, 1966, and ending at 12:01 a.m., P.s.t., January 16, 1966, are hereby fixed as follows:

- (i) District 1: 600,000 cartons;
- (ii) District 2: 122,971 cartons;
- (iii) District 3: 75,000 cartons;
- (iv) District 4: 25,000 cartons.

(2) As used in this section, "handled," "District 1," "District 2," "District 3," "District 4," and "carton" have the same meaning as when used in said amended marketing agreement and order.

(Secs. 1-19, 48 Stat. 31, as amended; 7 U.S.C. 601-674)

Dated: January 7, 1966.

PAUL A. NICHOLSON,
Deputy Director, Fruit and Vegetable Division, Consumer and Marketing Service.

[F.R. Doc. 66-328; Filed, Jan. 7, 1966; 11:46 a.m.]

[Lemon Reg. 196]

PART 910—LEMONS GROWN IN CALIFORNIA AND ARIZONA

Limitation of Handling

§ 910.496 Lemon Regulation 196.

(a) *Findings.* (1) Pursuant to the marketing agreement, as amended, and Order No. 910, as amended (7 CFR Part 910), regulating the handling of lemons grown in California and Arizona, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601-674), and upon the basis of the recommendations and information submitted by the Lemon Administrative Committee, established under the said amended marketing agreement and order, and upon other available information, it is hereby found that the limitation of handling of such lemons, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule-making procedure, and postpone the effective date of this section until 30 days after publication hereof in the FEDERAL REGISTER (5 U.S.C. 1001-1011) because the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient, and a reasonable time is permitted, under the circumstances, for preparation for such effective time; and good cause exists for making the provisions hereof effective as hereinafter set forth. The committee held an open meeting during the current week, after giving due notice thereof, to consider supply and market conditions for lemons and the need for regulation; interested persons were af-

forded an opportunity to submit information and views at this meeting; the recommendation and supporting information for regulation during the period specified herein were promptly submitted to the Department after such meeting was held; the provisions of this section, including its effective time, are identical with the aforesaid recommendation of the committee, and information concerning such provisions and effective time has been disseminated among handlers of such lemons; it is necessary, in order to effectuate the declared policy of the act, to make this section effective during the period herein specified; and compliance with this section will not require any special preparation on the part of persons subject hereto which cannot be completed on or before the effective date hereof. Such committee meeting was held on January 4, 1966.

(b) *Order.* (1) The respective quantities of lemons grown in California and Arizona which may be handled during the period beginning at 12:01 a.m., P.s.t., January 9, 1966, and ending at 12:01 a.m., P.s.t., January 16, 1966, are hereby fixed as follows:

- (i) District 1: 32,550 cartons;
- (ii) District 2: 125,550 cartons;
- (iii) District 3: Unlimited movement.

(2) As used in this section, "handled," "District 1," "District 2," "District 3," and "carton" have the same meaning as when used in the said amended marketing agreement and order.

(Secs. 1-19, 48 Stat. 31, as amended; 7 U.S.C. 601-674)

Dated: January 6, 1966.

PAUL A. NICHOLSON,
Acting Director, Fruit and Vegetable Division, Consumer and Marketing Service.

[F.R. Doc. 66-267; Filed, Jan. 7, 1966; 8:48 a.m.]

[Grapefruit Reg. 2]

PART 913—GRAPEFRUIT GROWN IN THE INTERIOR DISTRICT IN FLORIDA

Limitation of Handling

§ 913.302 Grapefruit Regulation 2.

(a) *Findings.* (1) Pursuant to the marketing agreement and Order No. 913 (7 CFR Part 913; 30 F.R. 15204), regulating the handling of grapefruit grown in the Interior District in Florida, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601-674), and upon the basis of the recommendations and information submitted by the Interior Grapefruit Marketing Committee, established under the said marketing agreement and order, and upon other available information, it is hereby found that the limitation of handling of such grapefruit, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule-making procedure,

and postpone the effective date of this section until 30 days after publication hereof in the FEDERAL REGISTER (5 U.S.C. 1001-1011) because the time intervening between the date when information upon which this section is based became available and the time when this regulation must become effective in order to effectuate the declared policy of the act is insufficient, and a reasonable time is permitted, under the circumstances, for preparation for such effective time; and good cause exists for making the provisions hereof effective as hereinafter set forth. The committee held an open meeting during the current week, after giving due notice thereof, to consider supply and market conditions for Interior grapefruit, and the need for regulation; interested persons were afforded an opportunity to submit information and views at this meeting; the recommendation and supporting information for regulation during the period specified herein were promptly submitted to the Department after such meeting was held; the provisions of this section, including its effective time, are identical with the aforesaid recommendation of the committee; and information concerning such provisions and effective time has been disseminated among handlers of such Interior grapefruit; it is necessary, in order to effectuate the declared policy of the act, to make this section effective during the period herein specified; and compliance with this section will not require any special preparation on the part of persons subject hereto which cannot be completed on or before the effective date hereof. Such committee meeting was held on January 5, 1966.

(b) *Order.* (1) The quantity of grapefruit grown in the Interior District which may be handled during the period beginning at 12:01 a.m., e.s.t., January 10, 1966, and ending at 12:01 a.m., e.s.t., January 17, 1966, is hereby fixed at 250,000 standard packed boxes.

(2) As used in this section, "handled," "Interior District," "grapefruit," and "standard packed box" have the same meaning as when used in said marketing agreement and order.

(Secs. 1-19, 48 Stat. 31, as amended; 7 U.S.C. 601-674)

Dated: January 5, 1966.

PAUL A. NICHOLSON,
Deputy Director, Fruit and Vegetable Division, Consumer and Marketing Service.

[F.R. Doc. 66-268; Filed, Jan. 7, 1966; 8:48 a.m.]

PART 967—CELERY GROWN IN FLORIDA

Limitation of Shipments

Notice of rule making with respect to proposed limitation of shipments regulation to be made effective under Marketing Agreement No. 149 and Order No. 967 (7 CFR Part 967; 30 F.R. 14266), regulating the handling of celery grown in Florida, was published in the FEDERAL REGISTER December 3, 1965 (30 F.R. 14991). This program is effective under

the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601 et seq.).

The notice afforded interested persons an opportunity to file written data, views, or arguments pertaining thereto within 5 days after publication. Proposed § 967.301 of the notice contemplated the establishment on December 15, 1965, of the marketable quantity for the 1965-66 season. Therefore, it was provided that in computing the total quantity of a producer's harvested celery that may be handled during the remainder of the 1965-66 season, there be deducted from such producer's marketable allotment such quantity of his harvested celery as was handled during the period November 15-December 15, 1965. The Florida Celery Committee submitted its recommendations with respect to such deduction and proposed that the period be extended to such subsequent date as this regulation is issued and that the deduction include all harvested celery handled up to and including that date. As hereinafter provided, § 967.301 requires that during the portion of the 1965-66 season beginning on January 9, 1966—the date of establishment of the marketable quantity—the handling of harvested celery is prohibited unless it is within the unused portion of a marketable allotment established for a producer for that season.

After consideration of all relevant matters, including the proposals set forth in the aforesaid notice, the data, views, and recommendations of the Florida Celery Committee and other available information, it is hereby found that the limitation of shipments regulation, as hereinafter set forth, including the establishment of the marketable quantity, and the determination of the uniform percentage, as provided in § 967.38(a) will tend to effectuate the declared policy of the act by maintaining orderly marketing conditions tending to increase returns to producers of such celery.

It is hereby found that good cause exists for not postponing the effective date of this section until 30 days after publication in the FEDERAL REGISTER (5 U.S.C. 1003) in that: (1) This limitation of shipments regulation applies to the handling of celery on and after January 9, 1966, during the 1965-66 season, and the handling of celery required to be included in computations with respect thereto for the 1965-66 season has begun; (2) it is necessary to place this regulation into effect at the earliest possible date, consistent with the previous findings (30 F.R. 14266) of the Secretary, in order to effectuate the declared policy of the act so that producers will be in a position to obtain the benefits of the program on as much of their 1965-66 crop of celery as is possible; (3) producers and handlers are afforded maximum opportunity for arranging their operations accordingly; (4) the provisions hereof do not require special preparation on the part of handlers which cannot be completed prior to January 9, 1966; and (5) notice of proposed rule making has been given by publication in the FEDERAL REGISTER of December 3, 1965 (30 F.R. 14991).

§ 967.301 Marketable quantity for 1965-66 season; uniform percentage; and limitation on handling.

(a) The marketable quantity for the 1965-66 season is established, pursuant to § 967.36(a), as 7,762,325 crates.

(b) As provided in § 967.38(a), the uniform percentage for the 1965-66 season is determined as 86.327 percent.

(c) During the period January 9, 1966, through July 31, 1966, no handler may handle, as provided in § 967.36(b)(1), any harvested celery unless it is within the unused portion of a marketable allotment established for a producer for the entire 1965-66 season.

(d) The 1965-66 season, for purposes of this section, shall be the period November 15, 1965, to July 31, 1966, both dates inclusive. All other terms used herein shall have the same meaning as when used in the marketing agreement and order.

(Secs. 1-19, 48 Stat. 31, as amended; 7 U.S.C. 601-674)

Dated: January 6, 1966, and issued as of January 9, 1966.

PAUL A. NICHOLSON,
Acting Director, Fruit and Vegetable Division, Consumer and Marketing Service.

[F.R. Doc. 66-296; Filed, Jan. 7, 1966; 8:48 a.m.]

Title 15—COMMERCE AND FOREIGN TRADE

Chapter I—Bureau of the Census, Department of Commerce

PART 30—FOREIGN TRADE STATISTICS

Exemptions for Shipments to the Armed Forces

Pursuant to section 302, Title 13, U.S.C., the following amendment is made to the regulations published in the FEDERAL REGISTER on March 16, 1963 (28 F.R. 2556), as amended. In accordance with section 4 of the Administrative Procedure Act, 5 U.S.C. 1003 (60 Stat. 238), it has been found that notice and hearing on this amendment and postponement of the effective date thereof are unnecessary because of the permissive nature of the amendment. This amendment will make the present exemptions and exceptions from the filing of Shipper's Export Declarations for Department of Defense shipments applicable to shipments to armed forces under the jurisdiction of other than the Department of Defense such as the U.S. Coast Guard.

Effective date. This amendment is effective on the date of publication.

Section 30.37(a)(2) is amended to read as follows:

§ 30.37 Exceptions from the requirement for reporting complete commodity detail on the Shipper's Export Declaration.

(a) * * *

(2) Shipments to a contractor under a Department of Defense or other armed service contract for the construction of facilities for the use of the United States armed services.

The title and introductory paragraph of § 30.52 are amended to read as follows:

§ 30.52 Special exemptions for shipments to the United States armed services.

Shipper's Export Declarations are not required for the following types of shipments to the United States armed services:

A. ROSS ECKLER,
Director, Bureau of the Census.

I concur:

TRUE DAVIS,
Assistant Secretary of the Treasury.

[F.R. Doc. 66-222; Filed, Jan. 7, 1966;
8:45 a.m.]

Title 16—COMMERCIAL PRACTICES

Chapter I—Federal Trade Commission [Docket No. C-1008]

PART 13—PROHIBITED TRADE PRACTICES

Barney's Super Center, Inc., et al.

Subpart—Advertising falsely or misleadingly: § 13.155 Prices: 13.155-15 Comparative; § 13.180 Quantity: 13.180-35 Offered; § 13.285 Value. Subpart—Misrepresenting oneself and goods—Goods: § 13.1720 Quantity; § 13.1775 Value; Misrepresenting oneself and goods—Prices: § 13.1785 Comparative.

(Sec. 6, 38 Stat. 721; 15 U.S.C. 46. Interpret or apply sec. 5, 38 Stat. 719, as amended; 15 U.S.C. 45) [Cease and desist order, Barney's Super Center, Inc., et al., Pittsburgh, Pa., Docket C-1008, Oct. 27, 1965]

In the Matter of Barney's Super Center, Inc., Barney's Tile & Paint of Baden, Inc., Barney's Tile & Paint of Butler, Inc., Barney's Tile & Paint of New Castle, Inc., Barney's Tile & Paint Stores of Wheeling, W. Va., Inc., and Barney's Tile & Paint Stores of Youngstown, Inc., Corporations, and Lawrence R. Weisberg and Harry Weltman, Individually and as Officers of Said Corporations

Consent order requiring a chain distributor of paints and floor covering products with six retail outlets in Pennsylvania, Ohio, and West Virginia, to cease making false and deceptive pricing, value, and savings claims in advertising said products by setting forth the term "Reg." in comparative-price advertisements to refer to prices which were higher than their regular retail prices and the term "Val." to refer to prices which were higher than the retail prices of the trade area; and misrepresenting the quantity of said merchandise for sale.

The order to cease and desist, including further order requiring report of compliance therewith, is as follows:

It is ordered, That respondents Barney's Super Center, Inc., Barney's Tile and Paint of Baden, Inc., Barney's Tile and Paint of Butler, Inc., Barney's Tile and Paint of New Castle, Inc., Barney's Tile and Paint Stores of Wheeling, W. Va., Inc. and Barney's Tile and Paint Stores of Youngstown, Inc., corporations, and their officers, and Lawrence R. Weisberg and Harry Weltman, individually and as officers of said corporations, and respondents' agents, representatives, and employees, directly or through any corporate or other device, in connection with the offering for sale, sale or distribution of paints and floor covering products, or any other products, in commerce, as "commerce" is defined in the Federal Trade Commission Act, do forthwith cease and desist from:

1. Using the terms "Reg.", "formerly", or any other terms or words of similar import or meaning, to refer to any amount which is in excess of the price at which such merchandise has been sold or offered for sale in good faith by respondents for a reasonably substantial period of time in the recent regular course of their business; or otherwise misrepresenting the price at which such merchandise has been sold or offered for sale by respondents.

2. Using the term "Val." or the word "value", or any other term or word of similar import or meaning, to refer to any amount which is appreciably in excess of the highest price at which substantial sales of such merchandise have been made in the recent regular course of business in the trade area where such representations are made; or otherwise misrepresenting the price at which such merchandise has been sold in the trade area where such representations are made.

3. Representing, in any manner, that by purchasing any of said merchandise, customers are afforded savings amounting to the difference between respondents' stated price and any other price used for comparison with that price:

(a) Unless respondents have offered such merchandise for sale at the compared price in good faith for a reasonably substantial period of time in the recent regular course of their business; or

(b) Unless substantial sales of said merchandise are being made in the trade area at the compared price, or a higher price; or

(c) Unless a substantial number of the principal retail outlets in the trade area regularly offer the merchandise for sale at the compared price or some higher price; or

(d) When a value comparison representation with comparable merchandise is used, unless substantial sales of merchandise of like grade and quality are being made in the trade area at the compared price or a higher price and it is clearly and conspicuously disclosed that the comparison is with merchandise of like grade and quality.

4. Misrepresenting, in any manner, the savings available to purchasers or prospective purchasers of respondents' merchandise.

5. Representing, directly or by implication, that stated quantities of certain merchandise have been purchased or that stated quantities of certain merchandise are available for sale: *Provided, however*, That it shall be a defense in any enforcement proceeding instituted hereunder for respondents to establish that such quantities have been purchased or that such quantities are available for sale as represented.

6. Representing, directly or by implication, that merchandise is available for purchase at stated prices or is being or will be sold at such prices: *Provided, however*, That it shall be a defense in any enforcement proceeding instituted hereunder for respondents to establish that a sufficient quantity of the advertised merchandise was available to meet all reasonably anticipated demands for the merchandise at the advertised price and that such merchandise was sold at or below the advertised price.

It is further ordered, That the respondents herein shall, within sixty (60) days after service upon them of this order, file with the Commission a report in writing setting forth in detail the manner and form in which they have complied with this order.

Issued: October 27, 1965.

By the Commission.

[SEAL] JOSEPH W. SHEA,
Secretary.

[F.R. Doc. 66-241; Filed, Jan. 7, 1966;
8:47 a.m.]

[Docket No. C-1009]

PART 13—PROHIBITED TRADE PRACTICES

Endicott-Johnson Corp.

Subpart—Acquiring corporate stock or assets: § 13.5 Acquiring corporate stock or assets: 13.5-20 Federal Trade Commission Act.

(Sec. 6, 38 Stat. 721; 15 U.S.C. 46. Interpret or apply sec. 5, 38 Stat. 719, as amended; sec. 7, 38 Stat. 731, as amended; 15 U.S.C. 45, 18) [Order of divestiture, Endicott-Johnson Corp., Endicott, N.Y., Docket C-1009, Oct. 29, 1965]

Consent order requiring one of the nation's largest shoe manufacturers with its principal place of business located in Endicott, N.Y., to cease and desist from acquiring any interest in any domestic concern engaged in manufacturing shoes and footwear for the next 20 years, without the prior approval of the Commission; the Commission's complaint charged that the firm's acquisition of the Nobil Shoe Co., of Akron, Ohio, operator of 121 retail shoe outlets, in September 1965, for a purchase price of \$9,400,000, violated the antimerger section of the Clayton Act.

The order of divestiture, including further order requiring report of compliance therewith, is as follows:

It is ordered, That for a period of 20 years after the service upon it of this order, Endicott-Johnson Corp. shall cease and desist from acquiring, directly or indirectly, through subsidiaries, or otherwise, the whole or any part of the share capital, or assets (other than products sold or purchased in the course of business), of, or any other interest in, any domestic concern, corporate or non-corporate, engaged principally or as one of its major commodity lines at the time of such acquisition, in any State of the United States or the District of Columbia, in the business of manufacturing or selling shoes or footwear, without the prior approval of the Federal Trade Commission.

It is further ordered, That the respondent herein shall, within sixty (60) days after service upon it of this order, file with the Commission a report in writing setting forth in detail the manner and form in which it has complied with this order.

Issued: October 29, 1965.

By the Commission.

[SEAL]

JOSEPH W. SHEA,
Secretary.

[F.R. Doc. 66-242; Filed, Jan. 7, 1966;
8:47 a.m.]

Title 17—COMMODITY AND SECURITIES EXCHANGES

Chapter II—Securities and Exchange Commission

[Release No. 7788]

PART 240—GENERAL RULES AND REGULATIONS, SECURITIES EX- CHANGE ACT OF 1934

Insider Trading, Exemption of Certain Transactions; Effective Date

In Release 34-7776 (F.R. Doc. 66-72, 31 F.R. 86) issued under date of December 23, 1965, the Securities and Exchange Commission announced the adoption of an amendment to Rule 16b-3 under the Securities Exchange Act of 1934.

It is ordered, That the effective date of the amendment shall be December 20, 1965.

By the Commission.

[SEAL]

ORVAL L. DuBOIS,
Secretary.

[F.R. Doc. 66-247; Filed, Jan. 7, 1966;
8:47 a.m.]

[Release No. 34-7774]

PART 240—GENERAL RULES AND REGULATIONS, SECURITIES EX- CHANGE ACT OF 1934

Stockholder Information Statements

The Securities and Exchange Commission has adopted new Regulation 14C (17 CFR 240.14c-1 to 240.14c-101) relating to the distribution of information pursuant to section 14(c) of the Securi-

ties Exchange Act of 1934. This section of the Act provides that issuers of securities registered on a national securities exchange and issuers of equity securities registered with the Commission pursuant to the new section 12(g) of the Act shall transmit to security holders from whom proxies are not solicited in connection with meetings of security holders information comparable to that which would be furnished in proxy material if proxies were solicited as prescribed by rules and regulations of the Commission. Notice of the proposed regulation was published January 18, 1965, in Release No. 34-7512 (30 F.R. 711).

Regulation 14C provides that in connection with every annual or other meeting of holders of a class of securities registered pursuant to section 12 of the Act the issuer shall transmit a written information statement to every security holder who is entitled to vote in regard to any matter to be acted upon at the meeting and from whom a proxy is not solicited on behalf of the management. Such information statement is required to contain substantially the same information as that which would be required in a proxy statement if proxies were solicited. In the case of an annual meeting the issuer is also required to transmit to security holders an annual report including financial statements certified by independent public or certified public accountants, similar to the annual report required to be transmitted by issuers which solicit proxies.

Rule 14c-7 (17 CFR 240.14c-7) of the new regulation provides that if the issuer knows that securities of any class entitled to vote at a meeting are held of record by a broker, dealer, bank or voting trustee, or their nominees, the issuer must inquire whether other persons are beneficial owners of such securities and must supply such record holder with enough copies of the information statement and annual report to security holders to enable the record holder to furnish copies of such material to the beneficial owners. The rule further requires that the issuer shall pay the reasonable expenses of the record holder in transmitting the material to the beneficial owners. In this respect the rule follows the provisions of Rule 14a-2(b) (17 CFR 240.14a-2(b)) of the proxy rules regarding the reimbursement of brokers and dealers for their reasonable expenses in transmitting proxy material to beneficial owners of securities. It is not contemplated that the charges shall be in excess of out-of-pocket expenses, including reasonable clerical expenses.

Three preliminary copies of the information statement are required to be filed with the Commission at least ten days before the statement is sent to security holders, or such shorter period as the Commission may authorize. Eight copies of the information statement in definitive form must also be filed. Four copies will be kept in the Commission's principal office for the use of the staff and for public inspection. The additional copies will be placed in the principal regional offices of the Commission and the regional office for the region in which

the issuer has its principal office. This distribution is intended to make the information contained in the information statement more readily available to interested persons, in line with recommendations of the Special Study of Security Markets.

Commission action. The Securities and Exchange Commission, acting pursuant to the Securities Exchange Act of 1934, particularly sections 14(c) and 23(a) thereof, hereby amends Part 240, Chapter II of Title 17 of the Code of Federal Regulations by adding §§ 240.14c-1 to 240.14c-7, § 240.14c-101 and a caption preceding § 240.14c-1 to read as set forth below. The foregoing action shall apply to any annual or other meeting of security holders held on or after March 15, 1966.

By the Commission, December 30, 1965.

[SEAL]

ORVAL L. DuBOIS,
Secretary.

REGULATION 14C; DISTRIBUTION OF INFORMATION PURSUANT TO SECTION 14(c)

§ 240.14c-1 Definitions.

Unless the context otherwise requires, all terms used in this regulation have the same meanings as in the Act or elsewhere in the general rules and regulations thereunder. In addition, the following definitions apply unless the context otherwise requires:

(a) **Associate.** The term "associate" used to indicate a relationship with any person, means (1) any corporation or organization (other than the issuer or a majority-owned subsidiary of the issuer) of which such person is an officer or partner or is, directly or indirectly, the beneficial owner of 10 percent or more of any class of equity securities, (2) any trust or other estate in which such person has a substantial beneficial interest or as to which such person serves as trustee or in a similar fiduciary capacity, and (3) any relative or spouse of such person, or any relative of such spouse, who has the same home as such person or who is a director or officer of the issuer or any of its parents or subsidiaries.

(b) **Information statement.** The term "information statement" means the statement required by Rule 14c-2 (§ 240.14c-2), whether or not contained in a single document.

(c) **Issuer.** The term "issuer" means the issuer of a class of securities registered pursuant to section 12 of the Act.

(d) **Last fiscal year.** The term "last fiscal year" of the issuer means the last fiscal year of the issuer ending prior to the date of the meeting with respect to which an information statement is required to be distributed.

(e) **Proxy.** The term "proxy" includes every proxy, consent or authorization within the meaning of section 14(a) of the Act. The consent or authorization may take the form of failure to object or to dissent.

§ 240.14c-2 Distribution of information statement.

(a) In connection with every annual or other meeting of the holders of a class

of securities registered pursuant to section 12 of the Act, the issuer of such securities shall transmit a written information statement containing the information specified in Schedule 14C (§ 240.14c-101) to every such security holder who is entitled to vote in regard to any matter to be acted upon at the meeting and from whom a proxy is not solicited on behalf of the management of the issuer: *Provided*, That in the case of a class of securities in unregistered or bearer form, such statement need be transmitted only to those security holders whose names and addresses are known to the issuer.

(b) The information statement shall be sent or given at least 20 days prior to the meeting date.

§ 240.14c-3 Annual report to be furnished security holders.

(a) If the information statement relates to an annual meeting of security holders at which directors are to be elected, it shall be accompanied or preceded by an annual report to such security holders as follows:

(1) The report shall contain such financial statements for the last fiscal year as will in the opinion of the management adequately reflect the financial position and results of operations of the issuer. Consolidated financial statements of the issuer and its subsidiaries shall be included in the report if they are necessary to reflect adequately the financial position and results of operations of the issuer and its subsidiaries, but in such case the individual statements of the issuer may be omitted, even though they are required to be included in reports to the Commission. Any differences, reflected in the financial statements in the report to security holders, from the principles of consolidation or other accounting principles or practices, or methods of applying accounting principles or practices, applicable to the financial statements of the issuer filed or proposed to be filed with the Commission, which have a material effect on the financial position or results of operations of the issuer, shall be noted and the effect thereof reconciled or explained in such report. Financial statements included in the report may, however, omit such details or employ such condensation as may be deemed suitable by the management, provided that such statements, considered as a whole in the light of other information contained in the report shall not by such procedure omit any material information necessary to a fair presentation or to make the financial statements not misleading under the circumstances. The financial statements included shall be certified by independent public or certified public accountants, unless (i) the corresponding statements included in the issuer's annual report filed or to be filed with the Commission for the same fiscal year are not required to be certified, or (ii) the Commission finds in a particular case that certification would be impracticable or would involve undue effort or expense. Subject to the foregoing requirements with respect to financial statements, the

annual report to security holders may be in any form deemed suitable by the management, and

(2) If the issuer has not previously submitted to its security holders an annual report pursuant to the rules and regulations under section 14 of the Act, the report shall also contain such information as to the business done by the issuer and its subsidiaries during the fiscal year as will, in the opinion of the management, indicate the general nature and scope of the business of the issuer and its subsidiaries.

(b) Four copies of each annual report sent to security holders pursuant to this section shall be mailed to the Commission, solely for its information, not later than the date on which such report is first sent or given to security holders or the date on which preliminary copies of the information statement are filed with the Commission pursuant to Rule 14c-5 (§ 240.14c-5), whichever date is later. The annual report is not deemed to be "filed" with the Commission or otherwise subject to this regulation or to the liabilities of section 18 of the Act, except to the extent that the issuer specifically requests that it be treated as a part of the information statement or incorporates it therein by reference.

§ 240.14c-4 Presentation of information in information statement.

(a) The information included in the information statement shall be clearly presented and the statements made shall be divided into groups according to subject matter and the various groups of statements shall be preceded by appropriate headings. The order of items and sub-items in the schedule need not be followed. Where practicable and appropriate, the information shall be presented in tabular form. All amounts shall be stated in figures. Information required by more than one applicable item need not be repeated. No statement need be made in response to any item or sub-item which is inapplicable.

(b) Any information required to be included in the information statement as to terms of securities or other subject matters which from a standpoint of practical necessity must be determined in the future may be stated in terms of present knowledge and intention. Subject to the foregoing, information which is not known to the issuer and which it is not reasonably within the power to the issuer to ascertain or procure may be omitted, if a brief statement of the circumstances rendering such information unavailable is made.

(c) All printed information statements shall be set in roman type at least as large as 10-point modern type except that to the extent necessary for convenient presentation financial statements and other statistical or tabular matter may be set in roman type at least as large as 8-point modern type. All type shall be leaded at least 2 points.

§ 240.14c-5 Filing of information statement.

(a) Three preliminary copies of the information statement shall be filed with

the Commission at least 10 days prior to the date definitive copies of such statement are first sent or given to security holders, or such shorter period prior to that date as the Commission may authorize upon a showing of good cause therefor.

(b) Eight definitive copies of the information statement, in the form in which it is furnished to security holders, shall be filed with, or mailed for filing to, the Commission not later than the date it is first sent or given to any security holders. Three copies thereof shall at the same time be filed with, or mailed for filing to, each national securities exchange upon which any security of the issuer is listed and registered.

(c) All copies of material filed pursuant to paragraph (a) of this section shall be clearly marked "Preliminary Copies" and shall be for the information of the Commission only, except that such material may be disclosed to any department or agency of the United States Government and the Commission may make such inquiries or investigation in regard to the material as may be necessary for an adequate review thereof by the Commission. All material filed pursuant to paragraph (a) or (b) of this section shall be accompanied by a statement of the date upon which copies thereof are intended to be, or have been, released to security holders.

(d) Where any information statement filed pursuant to this section is amended or revised, two of the copies of such amended or revised material filed pursuant to this section shall be marked to indicate clearly and precisely the changes effected therein. If the amendment or revision alters the text of the material the changes in such text shall be indicated by means of underscoring or in some other appropriate manner.

NOTE: Where preliminary copies of material are filed with the Commission pursuant to this section, the printing of definitive copies for distribution to security holders should be deferred until the comments of the Commission's staff have been received and considered.

§ 240.14c-6 False or misleading statements.

(a) No information statement shall contain any statement which, at the time and in the light of the circumstances under which it is made, is false or misleading with respect to any material fact, or which omits to state any material fact necessary in order to make the statements therein not false or misleading or necessary to correct any statement in any earlier communication with respect to the same meeting or subject matter which has become false or misleading.

(b) The fact that an information statement has been filed with or examined by the Commission shall not be deemed a finding by the Commission that such material is accurate or complete or not false or misleading, or that the Commission has passed upon the merits of or approved any statement contained therein or any matter to be acted upon by security holders. No rep-

resentation contrary to the foregoing shall be made.

§ 240.14c-7 Providing copies of material for certain beneficial owners.

If the issuer knows that securities of any class entitled to vote at a meeting are held of record by a broker, dealer, bank or voting trustee, or their nominees, the issuer shall inquire of such record holder whether other persons are the beneficial owners of such securities and, if so, the number of copies of the information statement and, in the case of an annual meeting at which directors are to be elected, the number of copies of the annual report to security holders, necessary to supply such material to the beneficial owners for whom proxy material has not been and is not to be made available. The issuer shall supply such record holder with additional copies in such quantities, assembled in such form and at such place, as the record holder may reasonably request in order to address and send one copy of each to each beneficial owner of securities so held and shall, upon the request of such record holder, pay its reasonable expenses for completing the mailing of such material to security holders to whom the material is sent.

§ 240.14c-101 Schedule 14C. Information required in information statement.

NOTE: Where any item, other than Item 5, calls for information with respect to any matter to be acted upon at the meeting, such item need be answered only with respect to proposals to be made by the management of the issuer.

Item 1. Information required by Items of Schedule 14A (17 CFR 240.14a-101). Furnish the information called for by all of the items of Schedule 14A of Regulation 14A (17 CFR 240.14a-101) (other than Items 1, 3, and 4 thereof) which would be applicable to any matter to be acted upon at the meeting if proxies were to be solicited in connection with the meeting.

Item 2. Statement that proxies are not solicited. The following statement shall be set forth on the first page of the information statement in bold-face type:

WE ARE NOT ASKING YOU FOR A PROXY AND YOU ARE REQUESTED NOT TO SEND US A PROXY

Item 3. Date, time and place of meeting. State the date, time and place of the meeting of security holders, unless such information is otherwise disclosed in material furnished to security holders with the information statement.

Item 4. Interest of certain persons in or opposition to matters to be acted upon. (a) Describe briefly any substantial interest, direct or indirect, by security holdings or otherwise, of each of the following persons in any matter to be acted upon, other than elections to office:

(1) Each person who has been a director or officer of the issuer at any time since the beginning of the last fiscal year.

(2) Each nominee for election as a director of the issuer.

(3) Each associate of the foregoing persons.

(b) Give the name of any director of the issuer who has informed the management in writing that he intends to oppose any action to be taken by the management at the meeting and indicate the action which he intends to oppose.

Item 5. Proposals by security holders. If any security holder entitled to vote at the meeting has submitted to the issuer a reasonable time before the information statement is to be transmitted to security holders a proposal, other than elections to office, which is accompanied by notice of his intention to present the proposal for action at the meeting, make a statement to that effect, identify the proposal and indicate the disposition proposed to be made of the proposal by the management at the meeting.

Instructions. 1. A proposal submitted with respect to an annual meeting more than 60 days in advance of a day corresponding to the date of mailing a proxy statement or information statement in connection with the last annual meeting of security holders shall prima facie be deemed to have been submitted a reasonable time before the information statement is to be transmitted to security holders.

2. If the management intends to rule a proposal out of order, the Commission shall be so advised at the time preliminary copies of the information statement are filed with the Commission, together with a statement of the reasons why the proposal is not deemed to be a proper subject for action by security holders.

(Secs. 14(c) and 23(a); 48 Stat. 895 and 901, as amended; 15 U.S.C. 78n and 78w)

[F.R. Doc. 66-248; Filed, Jan. 7, 1966; 8:47 a.m.]

Title 21—FOOD AND DRUGS

Chapter I—Food and Drug Administration, Department of Health, Education, and Welfare

SUBCHAPTER C—DRUGS

PART 166—DEPRESSANT AND STIMULANT DRUGS; DEFINITIONS, PROCEDURAL AND INTERPRETATIVE REGULATIONS

Combination Drugs; Temporary Exemption From Record-Keeping Requirements

The Drug Abuse Control Amendments of 1965 (Public Law 89-74) recognizes that there are combination drugs containing amphetamines and barbiturates so prepared as to offer no significant potential for abuse because of their depressant or stimulant effect on the central nervous system and provide a procedure whereby such drugs may be exempted from all or part of the requirements of section 511 of the Federal Food, Drug, and Cosmetic Act.

By publication in the FEDERAL REGISTER of December 18, 1965 (30 F.R. 15674), interested persons were invited to present their views on specific or classes of such drugs which should be exempted, with a closing date for comment of January 15, 1966.

Since consideration of views to be submitted and preparation of exempting orders will not be possible by the effective date of the Amendments, February 1, 1966, the American Pharmaceutical Association and others have recommended a temporary exemption from the record-keeping requirements of section 511(d) (1) of the act for the so-called combination drugs on the grounds that the ini-

tial inventory and record-keeping for these drugs called for as of February 1, 1966, are not required for public health protection and would require pharmacists to perform a large amount of work, much of which would eventually be proven unnecessary as combination drugs later were exempted from the requirements of that section.

The Food and Drug Administration has studied its own files relating to amphetamines and barbiturates in combination with other drugs and has found no evidence of significant abuse. Additionally, at its meeting in December 1965, the Advisory Committee appointed pursuant to section 511(g) (1) of the act, concluded that it did not have data to show that these combination drugs had been demonstrated to have significant potentiality for abuse.

The Food and Drug Administration proposes to give prompt attention to all recommendations for exemption which may be submitted pursuant to the notice of December 18, 1965. Meanwhile, on the basis that such action would present no undue hazard to the public health, the Commissioner of Food and Drugs hereby exempts the drugs defined below from the record-keeping requirements of section 511(d) (1) of the act on an interim basis until August 1, 1966.

Therefore, pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (secs. 511(f), 701, 52 Stat. 1055, as amended, 79 Stat. 230; 21 U.S.C. 360a(f), 371) and under the authority delegated to the Commissioner of Food and Drugs by the Secretary of Health, Education, and Welfare (21 CFR 2.90), Part 166 is amended by adding thereto the following new section:

§ 166.51 Combination drugs; temporary exemption from record-keeping requirements of section 511(d) (1) of the act.

The following drugs are exempt from the record-keeping requirements of section 511(d) (1) of the act on an interim basis until August 1, 1966:

(a) Drugs in unit-dosage form containing any quantity of a drug falling within the definition of a depressant or stimulant drug in section 201(v) of the act, which may be lawfully sold over-the-counter without a prescription, and

(b) Drugs containing amphetamines or barbiturates combined with other drugs; *Provided, however,* That this shall not apply to amphetamines or barbiturates combined with each other.

Notice and public procedure and delayed effective date are unnecessary prerequisites to this promulgation, and I so find, since this order protects the public health and is nonrestrictive.

Effective date. This order shall become effective on the date of its publication in the FEDERAL REGISTER.

(Secs. 511(f), 701, 52 Stat. 1055, as amended, 79 Stat. 230; 21 U.S.C. 360a(f) 371)

Dated: January 6, 1966.

WINTON B. RANKIN,
Acting Commissioner
of Food and Drugs.

[F.R. Doc. 66-282; Filed, Jan. 7, 1966; 8:48 a.m.]

Title 39—POSTAL SERVICE

Chapter I—Post Office Department

PART 201—PROCEDURES OF THE POST OFFICE DEPARTMENT

Payment of Rewards

A notice of payment of reward was published in the December 6, 1961, issue of the *FEDERAL REGISTER* (26 F.R. 11661). The notice of payment of reward is revised to include conspiracy as a rewardable offense. Upon the date of publication of this notice in the *FEDERAL REGISTER*, the following regulations will be effective and will supersede any previously published notices.

§ 201.82 Payment of rewards.

(a) *Services meriting rewards.* Subject to the availability of funds, the Post Office Department will upon publication of this notice in the *FEDERAL REGISTER* pay a reward for the arrest and conviction of any person for the following offenses:

ROBBERY

(1) Not to exceed \$2,000 for robbery or attempted robbery of any custodian of any mail, or money or other property of the United States under the control and jurisdiction of the Post Office Department, if such custodian is wounded or his life jeopardized with a dangerous weapon; but not to exceed \$1,000 if the custodian is not wounded, or his life jeopardized with a dangerous weapon.

MAILING OF BOMBS OR POISON

(2) Not to exceed \$2,000 for mailing or causing to be mailed any poison, bomb, device, or composition, with the intent to kill or harm another, or injure the mails or other property.

(3) Not to exceed \$200 for mailing or causing to be mailed any poison, bomb, device, or composition which may kill or harm another, or injure the mails or other property.

BURGLARY OF POST OFFICE

(4) Not to exceed \$200 for breaking into or attempting to break into a post office, station, branch, or building used wholly or partially as a post office with intent to com-

mit a larceny or other depredation in that part used as a post office.

THEFT OF MAIL

(5) Not to exceed \$200 for the theft of any mail, the contents thereof, or money or any other property of the United States under the custody and control of the Post Office Department, from any custodian, postal vehicle, railroad depot, airport, or other transfer point, post office or station or receptacle or depository established, approved, or designated by the Postmaster General for the receipt of mail.

EMBEZZLEMENT OF MAIL

(6) Not to exceed \$200 for embezzlement of mail or the contents thereof by a mail carrier on a mail messenger or star route.

GENERAL PROVISIONS

(7) The Post Office Department also pays rewards as stated above for the arrest and conviction of any person:

(a) As an accessory to any of the above crimes;

(b) For receiving or having unlawful possession of any mail, money or property secured through the above crimes.

(c) For conspiracy to commit any of the above crimes.

(8) When a person has been adjudged a juvenile delinquent for having committed any of the above crimes the same reward may be paid as though such person had been convicted of such crime.

(9) The term "custodian" as used herein includes any person having lawful charge, control, or custody of any mail matter, or any money or other property of the United States under the control and jurisdiction of the Post Office Department.

(10) A reward may be paid for the conviction of a person for an offense listed above, even though arrested for committing another offense.

(11) When an offender is killed while committing a crime listed above or in resisting lawful arrest, the same reward may be paid as though he had been convicted.

(12) The amount of the reward to be paid will be based on the importance of services rendered, character of the offender, risks and hazards involved, time spent, and expenses incurred. Maximum rewards will be paid only when services were of the maximum value.

(13) The Department will reject a claim where there has been collusion, or improper methods have been used to effect an arrest or to secure a conviction. It has the right to

allow only one reward where several persons were convicted of the same offense, or one person was convicted of several offenses.

(14) A written claim must be submitted to the Postal Inspector in Charge of the division in which the crime was committed within 6 months from the date of conviction of an offender or the date of his death, if killed in committing a crime or resisting arrest. Applications for the filing of claims may be obtained from the Inspector in Charge.

(R.S. 161, as amended; 5 U.S.C. 22, 39 U.S.C. 309, 501, 509)

HARVEY H. HANNAH,
Acting General Counsel.

[F.R. Doc. 66-251; Filed, Jan. 7, 1966;
8:47 a.m.]

Title 45—PUBLIC WELFARE

Chapter VIII—United States Civil Service Commission

PART 801—VOTING RIGHTS PROGRAM

Appendix A

LOUISIANA

Appendix A to Part 801 is amended under the heading "Dates, Times, and Places for Filing", by the addition of a new place for filing in West Feliciana Parish, La., and the closing of the present place for filing in that parish. The amendment is set out below:

LOUISIANA

Parish; Place for Filing; Beginning Date

* * * * *

West Feliciana; (1) Saint Francisville—trailer at U.S. Post Office; November 3, 1965, through January 7, 1966; (2) Saint Francisville—Post Office Building; January 8, 1966.

(Secs. 7 and 9 of the Voting Rights Act of 1965; P.L. 89-110)

UNITED STATES CIVIL SERVICE COMMISSION,

[SEAL] MARY V. WENZEL,
Executive Assistant to
the Commissioners.

[F.R. Doc. 66-293; Filed, Jan. 7, 1966;
8:48 a.m.]

Proposed Rule Making

DEPARTMENT OF THE TREASURY

Bureau of Customs

[19 CFR Part 2]

MEASUREMENT OF VESSELS

Closed-in Spaces Omitted From Gross Tonnage

Public Law 89-219, approved September 29, 1965 (79 Stat. 891), authorizes the Secretary of the Treasury in measuring vessels for register tonnage to omit from gross tonnage space for dry cargo and stores above the uppermost complete deck and between that deck and the deck next below and certain other spaces without requiring that tonnage openings be fitted as a condition to exemption as presently required. Under the provisions of the Act an owner may elect to have his vessel measured under the previously existing provisions which have been preserved or under the new provisions which in certain cases permit a vessel to be assigned gross and net tonnages applicable when a tonnage mark on the side of the vessel is submerged as well as somewhat lower gross and net tonnages applicable when the tonnage mark is not submerged.

Notice is hereby given that under authority of section 12 of Public Law 89-219, approved September 29, 1965 (79 Stat. 891), and section 4 of the Act of March 2, 1895, as amended (46 U.S.C. 79), it is proposed to amend Part 2 of the regulations as set forth in tentative form below.

§ 2.0 [Deleted]

1. Section 2.0 is deleted.

2. Section 2.1(a) is amended to read:

§ 2.1 Authority of Commissioner.

(a) The Secretary of the Treasury has delegated to the Commissioner of Customs supervision of the laws relating to the measurement of vessels. On all questions of interpretation growing out of the execution of the laws relating to this subject, the decision of the Commissioner is final.

3. Section 2.5 is amended to read:

§ 2.5 Gross register tonnage.

(a) The gross tonnage, referred to in this part is the gross register tonnage; that is, the gross tonnage exclusive of all permissible exempted spaces. Under the provisions of § 2.87(b), a vessel may have two gross tonnages. The higher gross tonnage is applicable when a tonnage mark which is placed and displayed on the side of the vessel is submerged and the lower is applicable when the tonnage mark is not submerged.

(b) Except in the case of a vessel which is measured under the provisions

of §§ 2.80 through 2.100, the gross register tonnage of a vessel shall consist of the sum of the following items:

(1) The cubical capacity below the tonnage deck, excluding exemptible water-ballast spaces within the measurable portion of the vessel;

(2) The cubical capacity of each between-deck space above the tonnage deck;

(3) The cubical capacity of the permanent closed-in spaces on the upper deck available for cargo or stores, or for the accommodation of passengers and/or crew;

(4) All permanent closed-in spaces situated elsewhere available for cargo or stores, or for the accommodation of the crew, or for the charts, except cabins or staterooms for passengers, constructed entirely above the first deck which is not a deck to the hull;

(5) The excess of hatchways.

(c) The gross tonnage of a vessel measured under the provisions of §§ 2.80 through 2.100 shall be determined as provided by § 2.86(a).

§ 2.6 [Amended]

4. Section 2.6 is amended as follows:

Paragraph (a) is amended by adding a second and third sentence reading: "Under the provisions of section 2.87(b) a vessel may have two net tonnages. The higher net tonnage is applicable when a tonnage mark which is placed and displayed on the side of the vessel is submerged and the lower is applicable when the tonnage mark is not submerged."

Paragraph (b) is amended to read:

(b) In ascertaining the net tonnage, no space may be deducted unless it has previously been included in the gross tonnage.

5. Section 2.7 is amended to read:

§ 2.7 The marine document.

The marine document of every vessel shall show the date and place of build, the register length, breadth, depth, and the height of the upper deck to the hull above the tonnage deck; if applicable, the depth (D.) and the length (L.) used with the tonnage mark table and the distances to the tonnage mark from the line of the upper deck and from the molded line or equivalent of the second deck; the number of decks and masts; build as to her stem and stern; capacity under the tonnage deck, that of the between decks, and also separately, permanently enclosed spaces on or above the upper deck to the hull required to be included in the gross tonnage, and the omitted spaces, whether open or closed-in, on, above, or below the upper deck; the gross tonnage or tonnages; items of deduction; and the net tonnage or tonnages.

6. Section 2.23 is amended to read:

§ 2.23 Register height.

The height from the top of the tonnage deck planking and/or plating to the underside of the planking and/or plating of the upper deck to the hull shall be deemed the register height of the upper deck to the hull above the tonnage deck.

7. Section 2.26(a) is amended to read:

§ 2.26 Tonnage deck.

(a) Except as to a vessel having its tonnage deck determined under the provisions of § 2.88(d), the tonnage deck is the upper deck to the hull in vessels having not more than two decks, and the second from the keel in vessels having more than two decks.

8. Section 2.39 is amended as follows:

The text in paragraph (a) preceding subparagraph (1) and paragraph (b) are amended to read:

§ 2.39 Between decks.

(a) The tonnage of the space between the tonnage deck and the deck next above shall be ascertained as follows:

(b) The tonnage of each of the between decks above the tonnage deck shall be severally ascertained in the manner described above and shall be added as items comprising the vessel's gross tonnage.

9. Section 2.42 is amended to read:

§ 2.42 Record of exempted spaces.

The tonnage measurement of all spaces that the measurer has not included in the gross tonnage of the vessel must be recorded in detail on customs Form 1410, "Tonnage Admeasurement" which, when forwarded to the Bureau for examination and appropriate action must be accompanied by suitable plans or sketches drawn to scale, or a complete explanation for the proper consideration of the exemption of such spaces.

10. Section 2.43, first paragraph, is amended to read:

§ 2.43 Enclosed spaces exempted from inclusion in gross tonnage.

In addition to the spaces omitted from inclusion in gross tonnage under the provisions of § 2.80 on vessels measured in accordance with the provisions of §§ 2.80 through 2.100, the following closed-in spaces situated on or above the upper deck shall not be included in the gross tonnage provided they are reasonable in extent, adapted and used exclusively for the purposes outlined:

11. Section 2.44, paragraph (a), first sentence, is amended to read:

§ 2.44 Passenger cabins.

(a) Except as provided in § 2.80(b), passenger cabins and staterooms immediately on the upper deck to the hull, permanently closed-in and fitted up for permanent use of passengers, are to be included in gross tonnage. * * *

12. Section 2.60a(a) is amended by adding two subparagraphs as follows:

§ 2.60a Marking net tonnage and official number on vessel.

(1) In the case of a vessel which is assigned two net tonnages under the provisions of § 2.87(b), both net tonnages shall be marked on the vessel. Immediately following the lower net tonnage there shall be marked a copy of the tonnage mark and the triangle which may be scaled to the size of the numerals.

(2) In the case of a vessel which is assigned a single net tonnage under the provisions of § 2.87(c), a copy of the tonnage mark and the triangle shall be similarly marked after the net tonnage as provided by subparagraph (1) of this paragraph.

13. Part 2 is amended to add a center-head and new §§ 2.80 through 2.100 as follows:

OPTIONAL DUAL-TONNAGE METHOD FOR MEASUREMENT OF VESSELS

§ 2.80 Additional closed-in spaces omitted from gross tonnage.

Upon application by the owner filed with and approved by the customs officer in charge of the district where the vessel is located, a vessel whether or not it has been previously measured shall be measured with the following closed-in spaces omitted from inclusion in the gross tonnage in addition to those spaces omitted under the provisions of §§ 2.43 and 2.44.

(a) Spaces on or above the uppermost complete deck available for carrying dry cargo and stores.

(b) Cabins and staterooms on the uppermost complete deck assigned for the use of passengers only when a tonnage mark placed and displayed on each side of the vessel under the provisions of §§ 2.89, 2.90, and 2.91 is not submerged.

(c) Spaces between the uppermost complete deck and the second deck available for carrying dry cargo and stores when the tonnage mark is not submerged, and

(d) Spaces between the uppermost complete deck and the second deck which would be omitted under the provisions of § 2.43 if on the uppermost complete deck but only when the tonnage mark is not submerged.

§ 2.81 Regulations applicable to vessels measured under the optional dual-tonnage method.

Except as provided for in § 2.80 and the subsequent sections of this part, a vessel measured under the provisions of the optional dual-tonnage method is subject to the same requirements as any other vessel which is measured under the pertinent provisions of this Part 2.

§ 2.82 Capacity under tonnage deck.

(a) The capacity under the tonnage deck shall be the cubic capacity below the actual tonnage deck less water-ballast spaces which are exemptible under the provisions of § 2.43.

(b) If the tonnage deck has one or more steps (breaks), the capacity under tonnage deck shall consist of:

(1) The cubic capacity of the space below the line of the lowest level of the tonnage deck; and

(2) The cubic capacity of spaces lying between that line and the actual tonnage deck.

(c) The tonnage length shall be measured as provided by § 2.27.

§ 2.83 Capacity between decks.

(a) The space between the actual tonnage deck and the actual uppermost complete deck shall be measured and included in the gross tonnage subject to the omissions provided by §§ 2.43 and 2.80 (c) and (d).

(b) If there are one or more steps in the tonnage deck or the uppermost complete deck or both, subject to the omissions provided by §§ 2.43 and 2.80 (c) and (d), the capacity between decks shall be the cubic capacity of the space between the line of the lowest level of the tonnage deck and the line of the lowest level of the uppermost complete deck plus the capacity of the space between the line of the lowest level of the uppermost complete deck and the actual uppermost complete deck minus the capacity of the space above the line of the lowest level of the tonnage deck which was included in the capacity under tonnage deck.

§ 2.84 Capacity of deck structures.

Deck structures of permanent nature situated on or above the uppermost complete deck shall be measured and included in the gross tonnage subject to the omissions provided by §§ 2.43, 2.44, and 2.80 (a) and (b).

§ 2.85 Hatchways.

The excess tonnage of hatchways over cargo spaces which are included in the gross tonnage shall be determined in accordance with the provisions of § 2.41.

§ 2.86 Register tonnages.

(a) The gross tonnage referred to in § 2.80 and subsequent sections is the gross register tonnage which is the sum of the following capacities:

(1) The capacity under tonnage deck as obtained under the provisions of § 2.82;

(2) The capacity between decks as obtained under the provisions of § 2.83;

(3) The capacity of deck structures as obtained under the provisions of § 2.84;

(4) The excess tonnage of hatchways as provided by § 2.85; and

(5) Light and air space added to the propelling machinery space under the provisions of § 2.59.

(b) The net tonnage referred to in subsequent sections is the net register tonnage which is the tonnage remaining after the authorized deductions have been made from the gross register tonnage.

§ 2.87 Single-tonnage and dual-tonnage assignments for vessels measured under the provisions of the optional dual-tonnage method.

(a) A single deck vessel shall be assigned only one gross tonnage and one net tonnage.

(b) A vessel having two or more complete decks may be assigned dual gross and net tonnages as follows:

(1) A higher gross tonnage applicable when the tonnage mark provided by § 2.89 is submerged.

(2) A higher net tonnage related to the higher gross tonnage;

(3) A lower gross tonnage applicable when the tonnage mark is not submerged; and

(4) A lower net tonnage related to the lower gross tonnage.

(c) A vessel having two or more complete decks may be assigned one gross tonnage and one net tonnage corresponding to the lower gross and net tonnages if the tonnage mark is placed at the level of the assigned load-line mark in accordance with the provisions of § 2.91 (b).

§ 2.88 Definitions of terms used in § 2.80 and following sections of this Part 2.

(a) The term "uppermost complete deck" means the uppermost complete deck of a vessel exposed to sea and weather, which shall be deemed to be that deck which has permanent means of closing all openings in the weather portions thereof, provided that any opening in the side of the vessel below that deck, other than an opening abaft a transverse watertight bulkhead placed aft of the rudder stock, is fitted with permanent means of watertight closing.

(b) The term "second deck" means the deck next below the uppermost complete deck which is continuous in a fore-and-aft direction at least between peak bulkheads, is continuous athwartships, is fitted as an integral and permanent part of the vessel's structure, and has proper covers to all main hatchways. Interruptions in way of propelling machinery space openings, ladder and stairway openings, trunks, chain lockers, cofferdams, or steps not exceeding a total height of 48 inches shall not be deemed to break the continuity of the deck.

(c) The term "trunks" as used in the definition of second deck shall be deemed to refer to hatch or ventilation trunks which do not extend longitudinally completely between main transverse bulkheads.

(d) The "tonnage deck" is the "uppermost complete deck" of a single deck vessel and the "second deck" of a vessel having more than one complete deck.

§ 2.89 The tonnage mark and form of identification.

(a) The tonnage mark referred to in § 2.80 (b), (c), and (d) shall consist of a horizontal line 15 inches long and 1 inch wide. On the tonnage mark shall be placed for identification purposes an inverted equilateral triangle, each side 12 inches long and 1 inch wide, with its apex on the midpoint of the line. (See figure 54.)

(b) When the load line assigning authority certifies that the load line is

Deck line for freeboard

Molded line of the second deck at side or equivalent

Forward

Diagram illustrating the measurement of freeboard for a ship's hull. The diagram shows a cross-section of the hull with the following dimensions and labels:

- Deck line for freeboard:** The uppermost horizontal line representing the deck.
- Molded line of the second deck at side or equivalent:** The lower horizontal line representing the second deck.
- Forward:** An arrow pointing to the right, indicating the ship's direction.
- Dimensions:**
 - c : Vertical distance from the molded line to the deck line.
 - m : Vertical distance from the molded line to the center of the circular hatch.
 - e : Vertical distance from the deck line to the center of the circular hatch.
 - h : Vertical distance from the molded line to the bottom of the circular hatch.
 - a : Vertical distance from the molded line to the bottom of the rectangular hatch.
 - v : Vertical distance from the molded line to the top of the rectangular hatch.
 - k : Horizontal distance from the molded line to the center of the circular hatch.

a=Distance from the molded line of second deck to upper edge of tonnage mark.
d=Molded draft to upper edge of tonnage mark.
e=Freeboard from loadline certificate.
h=Molded draft to loadline.
k=Distance from centerline of loadline disk to apex of triangle on tonnage mark.
m=Distance from deck line to tonnage mark.
t=Distance from molded line of second deck to deck line for freeboard.

(c) For intermediate lengths and L_c/D_g ratios, the corresponding distances shall be obtained by linear interpolation. For other cases the distances shall be obtained by extrapolation.

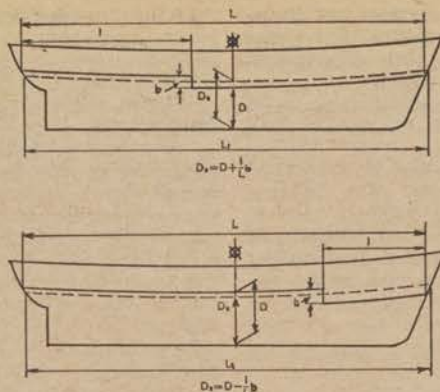


FIGURE 57.—Equivalent depths and lengths in cases of stepped decks (§§ 2.92 and 2.93).

b = Height of step in deck.
 D = Molded depth from second deck at the side amidships.
 D_s = Equivalent depth used with the tonnage mark table.
 L = Total length of portions of stepped deck.
 L_t = Equivalent length used with tonnage mark table.
 I = Length of shorter portion of stepped deck.

§ 2.95 Tonnage mark table.

(a) Minimum distance from the molded line of the second deck to the upper edge of the tonnage mark.

[In inches]

L_t/D_s	12	13	14	15	16	17	18	19	20
Length L_t in feet:									
220 and under	2.0	2.0	2.0	2.0	2.0	2.0	2.0	2.0	2.0
230	3.2	2.0	2.0	2.0	2.0	2.0	2.0	2.0	2.0
240	4.7	2.0	2.0	2.0	2.0	2.0	2.0	2.0	2.0
250	6.3	3.3	2.0	2.0	2.0	2.0	2.0	2.0	2.0
260	8.0	4.8	2.1	2.0	2.0	2.0	2.0	2.0	2.0
270	9.9	6.4	3.5	2.0	2.0	2.0	2.0	2.0	2.0
280	11.8	8.1	4.9	2.1	2.0	2.0	2.0	2.0	2.0
290	13.9	9.9	6.5	3.5	2.0	2.0	2.0	2.0	2.0
300	16.0	11.7	8.1	4.9	2.1	2.0	2.0	2.0	2.0
310	18.3	13.7	9.8	6.4	3.5	2.0	2.0	2.0	2.0
320	20.7	15.8	11.7	8.1	4.9	2.1	2.0	2.0	2.0
330	23.2	18.0	13.6	9.8	6.4	3.5	2.0	2.0	2.0
340	25.9	20.4	15.7	11.6	8.1	4.9	2.1	2.0	2.0
350	28.7	22.9	17.9	13.6	9.8	6.5	3.6	2.0	2.0
360	31.7	25.5	20.2	15.7	11.7	8.2	5.0	2.2	2.0
370	34.7	28.3	22.7	17.9	13.6	9.9	6.6	3.7	2.0
380	38.0	31.1	25.3	20.2	15.7	11.8	8.3	5.2	2.4
390	41.3	34.1	27.9	22.6	17.9	13.8	10.1	6.8	3.8
400	44.8	37.2	30.7	25.0	20.1	15.8	11.9	8.4	5.3
410	48.2	40.3	33.5	27.7	22.6	18.1	14.0	10.4	7.2
420	51.5	43.4	36.4	30.4	25.2	20.6	16.4	12.7	9.4
430	54.8	46.5	39.4	33.3	27.9	23.2	19.0	15.2	11.8
440	58.4	49.9	42.6	36.4	30.9	26.0	21.7	17.8	14.4
450	62.1	53.4	46.0	39.6	33.9	29.0	24.6	20.6	17.1
460	65.9	57.0	49.5	42.9	37.1	32.1	27.6	23.5	19.9
470	69.8	60.7	53.0	46.3	40.4	35.2	30.6	26.5	22.8
480	73.7	64.4	56.5	49.7	43.7	38.4	33.7	29.5	25.7
490	77.5	68.1	60.0	53.0	46.9	41.5	36.7	32.4	28.5
500	81.2	71.6	63.4	56.2	50.0	44.5	39.6	35.2	31.2
510	84.9	75.1	66.7	59.4	53.0	47.4	42.4	37.9	33.9
520	88.4	78.4	69.9	62.4	55.9	50.2	45.1	40.5	36.4
530	91.8	81.6	72.9	65.3	58.7	52.9	47.7	43.0	38.8
540	95.2	84.8	75.9	68.1	61.4	55.5	50.2	45.4	41.2
550	98.4	87.8	78.8	70.9	64.0	58.0	52.6	47.8	43.4
560	101.6	90.8	81.6	73.6	66.6	60.5	55.0	50.1	45.6
570	104.8	93.8	84.4	76.3	69.2	62.9	57.3	52.3	47.8
580	107.9	96.8	87.2	78.9	71.7	65.3	59.6	54.5	49.9
590	111.0	99.7	90.0	81.5	74.2	67.7	61.9	56.7	52.0
600	114.0	102.5	92.6	84.0	76.5	69.9	64.0	58.8	54.0
610	117.0	105.3	95.2	86.5	78.9	72.1	66.2	60.8	56.0
620	120.0	108.0	97.8	88.9	81.2	74.4	68.3	62.8	58.0
630	122.9	110.7	100.4	91.3	83.5	76.6	70.4	64.8	59.9
640	125.7	113.4	102.9	93.7	85.8	78.7	72.4	66.8	61.7
650	128.6	116.1	105.4	96.1	88.0	80.8	74.4	68.7	63.6
660	131.4	118.7	107.8	98.3	90.1	82.8	76.3	70.6	65.3
670	134.2	121.2	110.2	100.6	92.2	84.8	78.3	72.4	67.1
680	136.9	123.8	112.6	102.9	94.3	86.8	80.2	74.2	68.9
690	139.6	126.3	115.0	105.1	96.4	88.8	82.1	76.0	70.6
700	142.3	128.8	117.3	107.3	98.5	90.8	83.9	77.8	72.3
710	144.9	131.3	119.6	109.4	100.5	92.7	85.7	79.5	73.9
720	147.5	133.7	121.8	111.5	102.5	94.6	87.5	81.2	75.5
730	150.1	136.1	124.0	113.6	104.5	96.5	89.3	82.9	77.1
740	152.7	138.5	126.2	115.7	106.5	98.3	91.1	84.5	78.7
750	155.3	140.8	128.5	117.8	108.4	100.1	92.8	86.1	80.3
760	157.8	143.1	130.6	119.7	110.3	101.9	94.4	87.8	81.7
770	160.2	145.4	132.7	121.7	112.1	103.6	96.0	89.3	83.2
780	162.6	147.6	134.8	123.7	113.9	105.3	97.6	90.8	84.7
790	165.1	149.9	136.9	125.6	115.7	107.0	99.2	92.3	86.1
800	167.5	152.1	138.9	127.4	117.4	108.6	100.8	93.8	87.4

(b) Examples of use of tonnage mark table.

(1) Consider a vessel in which:

L_t = 450 feet.
 D_s = 30 feet.
 L_t/D_s = 450/30 = 15.

In the table under the L_t/D_s column headed 15 and opposite the L_t of 450 read 39.6 inches which is the distance from the molded line of the second deck at the side to the place where the upper edge of the tonnage mark should be placed.

(2) Consider a vessel in which:

L_t = 424.80 feet.
 D_s = 28.00 feet.
 L_t/D_s = 424.80/28.00 = 15.17.

It will be necessary to interpolate to obtain the distance from the molded line of the second deck to the upper edge of the tonnage mark.

Set down figures from the table and from the actual dimensions of the vessel as follows:

L_t	Tabular L_t/D_s 15	Actual L_t/D_s 15.17	Tabular L_t/D_s 16
From table 420	30.4	-----	25.2
Actual 424.80	r	a	s
From table 430	33.3	-----	27.9

$r = 30.4 + 0.48(33.3 - 30.4) = 31.79$
 $s = 25.2 + 0.48(27.9 - 25.2) = 26.50$
 $a = r - 0.17(r - s)$
 $a = 31.79 - 0.17(31.79 - 26.50) = 30.89$ inches.

§ 2.96 Line of the second deck.

No line of the second deck shall be marked on the side of the vessel.

§ 2.97 Line of the uppermost complete deck.

(a) For a vessel having no statutory loadline, the line of the uppermost complete deck shall be marked similarly to the deck line provided by the Load Line Convention.

(b) The deck line shall be a horizontal line 12 inches long and 1 inch wide. It shall be marked abaft amidships above the place on each side of the vessel prescribed in § 2.90 for the tonnage mark. Its upper edge shall pass through the point where the continuation outward of the upper surface of the freeboard deck intersects the outer surface of the shell. (See fig. 58.) Where the deck is partly sheathed amidships, the upper edge of the deck line shall pass through the point where the continuation outward of the upper surface of the actual sheathing at amidships intersects the outer surface of the shell.

§ 2.98 Placing the tonnage mark in relation to the deck line.

(a) As a practical matter, since the molded line of the second deck is not to be marked on the side of the vessel, the position of the tonnage mark shall be determined by reference to the deck line for freeboard or, in the absence of such a line, with reference to the deck line provided by § 2.97.

(b) The upper edge of the tonnage mark shall be below the upper edge of the deck line, a distance equivalent to the sum of the vertical distance (determined by reference to the tonnage mark table) from the molded line of the second

deck or equivalent to the upper edge of the tonnage mark plus the vertical distance from the molded line of the second deck or equivalent to the upper edge of the deck line. (See in figs. 55 and 56, $a+t=m$.)

(c) In the case of a vessel for which it is desired to have only one set of tonnages, the tonnage mark shall be placed at the level of the uppermost part of the loadline grid as provided by § 2.91(b). (See fig. 56.)

§ 2.99 Application for measurement according to the optional dual tonnage method.

(a) Application of the owner or his agent for measurement of a vessel under the provisions of the optional dual tonnage method shall be submitted in duplicate together with supporting plans or sketches to the customs officer in charge of the district in which the vessel is or will be located.

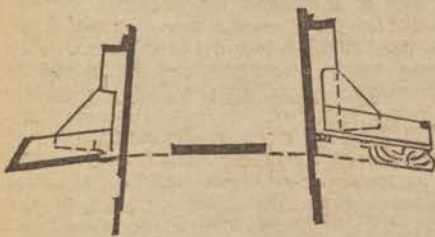


FIGURE 58.—Deck line—12 inches x 1 inch

(b) The application shall include the following information: (See figures 55, 56, and 57.)

(1) Molded depth at midship section from second deck at side.

(2) Depth used with tonnage mark table.

(3) Length of shorter portion of stepped second deck if any.

(4) Total length of longer and shorter portions of stepped second deck.

(5) Length used with tonnage mark table.

(6) Height of step (break) in the second deck, if any.

(7) Distance from the molded line of the second deck or equivalent to the upper edge of the tonnage mark.

(8) Molded draft to the upper edge of the tonnage mark.

(9) Freeboard from the loadline certificate.

(10) Molded draft to the loadline.

(11) Distance from the centerline of the loadline disk to the apex of the triangle on the tonnage mark.

(12) Distance from the deck line to the tonnage mark.

(13) Distance from the molded line of the second deck or equivalent to the deck line for freeboard.

(14) Allowance for fresh water and tropical waters ($\frac{1}{8}$ of the molded draft to the upper edge of the tonnage mark).

(15) The name and official number of the vessel, if assigned.

(16) Builder's name and hull number if official number has not been assigned.

(17) Time and place vessel will be available for measurement.

(18) Whether two sets of tonnages are desired.

(c) The owner may request confirmation of the proposed location of the tonnage mark based on the information contained in the application.

(d) On a copy of the application or on an attachment thereto, the owner shall be advised:

(1) That the vessel will be measured under the provisions of the optional dual-tonnage method; and

(2) Whether the proposed location of the tonnage mark determined according to the information furnished on the application is correct under the provisions of the regulations.

§ 2.100 Certification as to location of the tonnage mark.

(a) Before a certificate of admeasurement shall be issued for a vessel requiring a tonnage mark, the owner or his agent shall certify that a tonnage mark has been placed on each side of the vessel in accordance with the pertinent provisions of the regulations.

(b) A certification by the American Bureau of Shipping or other recognized classification society that the tonnage marks have been applied under the provisions of the regulations shall be accepted as evidence of proper marking.

(c) In the absence of a certification by the American Bureau of Shipping or other recognized classification society, the customs officer in charge may at any time cause a tonnage mark to be verified on a vessel in his district.

This notice is published pursuant to section 4 of the Administrative Procedure Act (5 U.S.C. 1003). Prior to final action on the proposal consideration will be given to any data, views, or arguments pertaining thereto which are submitted in writing to the Commissioner of Customs, Washington, D.C., and received within a period of 60 days from the date of the publication of this notice in the FEDERAL REGISTER. No hearings will be held.

[SEAL] LESTER D. JOHNSON,
Commissioner of Customs.

Approved: December 30, 1965.

JAMES POMEROY HENDRICK,
Acting Assistant Secretary
of the Treasury.

[F.R. Doc. 66-152; Filed, Jan. 7, 1966;
8:45 a.m.]

DEPARTMENT OF AGRICULTURE

Consumer and Marketing Service

[7 CFR Part 52]

GRADES OF GREEN OLIVES

Additional Time for Filing Written Data, Views, and Arguments

A proposal to revise the U.S. Standards for Grades of Green Olives was published in the FEDERAL REGISTER of September 14, 1965 (F.R. Doc. 65-9662; 30 F.R. 11723).

In consideration of comments and suggestions received indicating a need for further study by the producing and packaging industry, notice is hereby given

that the time for receiving written data, views, or arguments from interested parties in connection with the proposed revision of the U.S. Standards for Grades of Green Olives has been extended to April 1, 1966.

Statement of consideration leading to the allowing of additional time. Comments from packagers and producers who are concerned with the production and marketing of this product indicate a need for more time in which to study the proposed revision and possible effects on the marketing of this product. In addition, a formal request, on behalf of a large segment of the industry, for such additional time has been received. It is deemed, therefore, to be in the best interest of all concerned to allow the additional time in which to evaluate the proposal and to submit written comments.

All persons who wish to submit written data, views, or arguments within the additional time for consideration in connection with the proposal should file the same—in duplicate—with the Hearing Clerk, Room 112-A, U.S. Department of Agriculture, Washington, D.C., 20250, on or before April 1, 1966. Comments received will be available for public inspection.

(Sec. 205, 60 Stat. 1090, as amended; 7 U.S.C. 1624)

Dated: January 4, 1966.

G. R. GRANGE,
Deputy Administrator,
Marketing Services.

[F.R. Doc. 66-244; Filed, Jan. 7, 1966;
8:47 a.m.]

FEDERAL AVIATION AGENCY

[14 CFR Part 71]

[Airspace Docket No. 65-SO-95]

TRANSITION AREA

Proposed Designation

The Federal Aviation Agency is considering amendments to Part 71 of the Federal Aviation Regulations that would designate the Johns Island, S.C., transition area.

The proposed transition area would be designated as that airspace extending upward from 700 feet above the surface within an 8-mile radius of the Johns Island Airport (latitude 32°42'00" N., longitude 80°00'00" W.), excluding the portion within R-6003 and the Charleston, S.C., 700-foot transition area.

The proposed transition area is needed for the protection of IFR operations at the Johns Island Airport. A prescribed instrument approach procedure to Johns Island Airport utilizing the Charleston, S.C. VORTAC is proposed in conjunction with the designation of this transition area.

Interested persons may submit such written data, views or arguments as they may desire. Communications should be submitted in triplicate to the Area Manager, Atlanta Area Office, Attention: Chief, Air Traffic Branch, Federal Avia-

tion Agency, Post Office Box 20636, Atlanta, Ga., 30320. All communications received within 30 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. No hearing is contemplated at this time, but arrangements for informal conferences with Federal Aviation Agency officials may be made by contacting the Chief, Air Traffic Branch. Any data, views or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The proposal contained in this notice may be changed in the light of comments received.

The official docket will be available for examination by interested persons at the Southern Regional Office, Federal Aviation Agency, Room 724, 3400 Whipple Street, East Point, Ga.

This amendment is proposed under section 307(a) of the Federal Aviation Act of 1958 (49 U.S.C. 1348(a)).

Issued in East Point, Ga., on December 30, 1965.

JAMES G. ROGERS,
Director, Southern Region.

[F.R. Doc. 66-230; Filed, Jan. 7, 1966;
8:45 a.m.]

[14 CFR Part 71]

[Airspace Docket No. 65-SO-96]

TRANSITION AREA

Proposed Designation

The Federal Aviation Agency is considering amendments to Part 71 of the Federal Aviation Regulations that would designate the St. Marys, Ga., transition area.

The proposed transition area would be designated as that airspace extending upward from 700 feet above the surface within an 8-mile radius of the St. Marys Airport (latitude 30°44'45" N., longitude 81°33'30" W.), within 2 miles each side of the Jacksonville, Fla. VORTAC 001° radial extending from the St. Marys 8-mile radius area to the Jacksonville VORTAC, excluding the portion that would coincide with the Jacksonville, Fla., 700-foot transition area.

The proposed transition area is needed for the protection of IFR operations at the St. Marys, Ga., Airport. A prescribed instrument approach procedure to the St. Marys Airport utilizing the Jacksonville, Fla., VORTAC is proposed in conjunction with the designation of this transition area.

Interested persons may submit such written data, views or arguments as they may desire. Communications should be submitted in triplicate to the Area Manager, Atlanta Area Office, Attention: Chief, Air Traffic Branch, Federal Aviation Agency, Post Office Box 20636, Atlanta, Ga., 30320. All communications received within 30 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. No hearing is contemplated at this time,

but arrangements for informal conferences with Federal Aviation Agency officials may be made by contacting the Chief, Air Traffic Branch. Any data, views or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The proposal contained in this notice may be changed in the light of comments received.

The official docket will be available for examination by interested persons at the Southern Regional Office, Federal Aviation Agency, Room 724, 3400 Whipple Street, East Point, Ga.

This amendment is proposed under section 307(a) of the Federal Aviation Act of 1958 (49 U.S.C. 1348(a)).

Issued in East Point, Ga., on December 30, 1965.

JAMES G. ROGERS,
Director, Southern Region.

[F.R. Doc. 66-231; Filed, Jan. 7, 1966;
8:46 a.m.]

[14 CFR Part 71]

[Airspace Docket No. 65-AL-24]

CONTROL ZONE AND TRANSITION AREAS

Proposed Alteration and Designation

Notice is hereby given that the Federal Aviation Agency is considering amendments to Part 71 of the Federal Aviation Regulations which would alter the controlled airspace in the Gulkana, Alaska, terminal area.

The following controlled airspace is presently designated in the Gulkana, Alaska, terminal area.

1. GULKANA, ALASKA, CONTROL ZONE

Within a 5-mile radius of Gulkana Airport (latitude 62°09' N., longitude 145°27' W.) and within 2 miles either side of the Gulkana RR north course extending from the 5-mile radius zone to 12 miles north of the RR.

2. GULKANA, ALASKA, TRANSITION AREA

That airspace extending upward from 1,200 feet above the surface within 8 miles either side of the 171° and 351° bearings from the Gulkana RR, extending from 13 miles north to 13 miles south of the RR.

The Federal Aviation Agency, having completed a comprehensive review of the current terminal airspace structure requirements in the Gulkana, Alaska, terminal area, including studies attendant to the implementation of the provisions of CAR Amendments 60-21/60-29, proposes the following airspace actions:

1. Amend § 71.171 Control zones:

GULKANA, ALASKA

Within a 5-mile radius of the Gulkana Airport (latitude 62°09' N., longitude 145°27' W.) and within 2 miles each side of the Gulkana RR 357° bearing from the Gulkana RR extending from the 5-mile radius zone to 8 miles north of the RR; and within 2 miles each side of the Gulkana TACAN 350° radial extending from the 5-mile radius zone to a point 12 miles north of the TACAN.

2. Amend § 71.181 Transition areas:

GULKANA, ALASKA

That airspace extending upward from 1,200 feet above the surface within 7 miles east and 10 miles west of the Gulkana TACAN 350° and 170° radials, extending from 18 miles north to 25 miles south of the TACAN.

The actions proposed herein would alter the configuration of the Control Zone extension to the north to provide protective airspace for prescribed instrument procedures.

The proposed 1,200-foot transition area would provide protective airspace for aircraft executing portions of the prescribed instrument approaches, missed approaches, departures, and holding procedures conducted beyond the limits of the control zone.

The floors of the airways which traverse the transition area proposed herein would automatically coincide with the floors of the transition area.

Interested persons may submit such written data, views or arguments as they may desire. Communications should be submitted in triplicate to the Chief, Air Traffic Division, Alaskan Region, Federal Aviation Agency, 632 Sixth Avenue, Anchorage, Alaska, 99501. All communications received within 45 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendments. No public hearing is contemplated at this time, but arrangements for informal conferences with Federal Aviation Agency officials may be made by contacting the Chief, Air Traffic Division. Any data, views or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The proposal contained in this notice may be changed in the light of comments received.

The public docket will be available for examination by interested persons at the Office of the Regional Counsel, Federal Aviation Agency, 632 Sixth Avenue, Anchorage, Alaska, 99501.

This amendment is proposed under the authority of section 307(a) of the Federal Aviation Act of 1958 (49 U.S.C. 1348).

Issued in Anchorage, Alaska, on December 30, 1965.

GEORGE W. GARY,
Director, Alaskan Region.

[F.R. Doc. 66-258; Filed, Jan. 7, 1966;
8:48 a.m.]

[14 CFR Part 71]

[Airspace Docket No. 65-AL-25]

CONTROL ZONE

Proposed Alteration

The Federal Aviation Agency is considering amendments to Part 71 of the Federal Aviation Regulations which would alter the control zone at Nenana, Alaska.

The Nenana, Alaska, control zone is presently described as that area within a 5-mile radius of Nenana FAA Airport.

The Federal Aviation Agency, having completed a comprehensive review of the terminal airspace structure requirements in the Nenana, Alaska, terminal area, including studies relevant to the implementation of the provisions of CAR Amendments 60-21/60-29, proposes the following airspace action: Alter the Nenana, Alaska, control zone by redesignating it to comprise that airspace within a 5-mile radius of the Nenana, Alaska, Airport (latitude 64°33' N., longitude 149°05' W.); and within 2 miles each side of the Nenana RR SE course, extending from the 5-mile radius zone to 10 miles SE of the RR.

The action proposed herein would add a control zone extension on the SE course to provide protection for aircraft executing the prescribed instrument approach procedure. The existing Fairbanks, Alaska, 1,200-foot transition area provides protection for aircraft executing prescribed Nenana holding patterns and the procedure turn portion of the Nenana instrument approach procedure.

Interested persons may submit such written data, views or arguments as they may desire. Communications should be submitted in triplicate to the Chief, Air Traffic Division, Alaskan Region, Federal Aviation Agency, 632 Sixth Avenue, Anchorage, Alaska, 99501. All communications received within 45 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendments. No public hearing is contemplated at this time, but arrangements for informal conferences with Federal Aviation Agency officials may be made by con-

tacting the Chief, Air Traffic Division. Any data, views or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The proposal contained in this notice may be changed in the light of comments received.

The public docket will be available for examination by interested persons at the Office of the Regional Counsel, Federal Aviation Agency, 632 Sixth Avenue, Anchorage, Alaska, 99501.

These amendments are proposed under the authority of section 307(a) of the Federal Aviation Act of 1958 (49 U.S.C. 1348).

Issued in Anchorage, Alaska, on December 30, 1965.

GEORGE W. GARY,

Director, Alaskan Region.

[F.R. Doc. 66-259; Filed, Jan. 7, 1966; 8:48 a.m.]

[14 CFR Part 71]

[Airspace Docket No. 65-SO-94]

TRANSITION AREA

Proposed Designation

The Federal Aviation Agency is considering amendments to Part 71 of the Federal Aviation Regulations that would designate the Douglas, Ga., transition area.

The proposed transition area would be designated as that airspace extending upward from 700 feet above the surface within a 5-mile radius of the Douglas Airport (latitude 31°29'10" N., longitude 82°51'15" W.), within 2 miles each side of the Alma, Ga., VORTAC 258° radial extending from the Douglas 5-mile radius area to the Alma VORTAC.

The proposed transition area is needed for the protection of IFR operations at Douglas, Ga., Airport. A prescribed instrument approach procedure to Douglas Airport utilizing the Alma, Ga., VORTAC is proposed in conjunction with the designation of this transition area.

Interested persons may submit such written data, views or arguments as they may desire. Communications should be submitted in triplicate to the Area Manager, Atlanta Area Office, Attention: Chief, Air Traffic Branch, Federal Aviation Agency, Post Office Box 20636, Atlanta, Ga., 30320. All communications received within 30 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. No hearing is contemplated at this time, but arrangements for informal conferences with Federal Aviation Agency officials may be made by contacting the Chief, Air Traffic Branch. Any data, views or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The proposal contained in this notice may be changed in the light of comments received.

The official docket will be available for examination by interested persons at the Southern Regional Office, Federal Aviation Agency, Room 724, 3400 Whipple Street, East Point, Ga.

This amendment is proposed under section 307(a) of the Federal Aviation Act of 1958 (49 U.S.C. 1348(a)).

Issued in East Point, Ga., on December 30, 1965.

JAMES G. ROGERS,

Director, Southern Region.

[F.R. Doc. 66-260; Filed, Jan. 7, 1966; 8:48 a.m.]

Notices

DEPARTMENT OF THE TREASURY

Comptroller of the Currency INSURED BANKS

Joint Call for Report of Condition

CROSS REFERENCE: For a document relating to a joint call for report of condition of insured banks, see F.R. Doc. 66-252, Federal Deposit Insurance Corporation, *infra*.

DEPARTMENT OF THE INTERIOR

National Park Service

[Order 2]

JEFFERSON NATIONAL EXPANSION MEMORIAL

Assistant Superintendent et al.; Delegation of Authority Regarding Execution of Contracts for Supplies, Equipment or Services

SECTION. 1. *Assistant Superintendent and Administrative Officer.* The Assistant Superintendent and Administrative Officer may execute and approve contracts not in excess of \$50,000 for supplies, equipment, or services in conformity with applicable regulations and statutory authority and subject to availability of appropriations.

SEC. 2. *Procurement and Property Management Officer.* The Procurement and Property Management Officer may execute and approve contracts not in excess of \$2,500 for supplies, equipment or services in conformity with applicable regulations and statutory authority and subject to availability of appropriations.

SEC. 3. *Procurement and Property Management Assistant.* The Procurement and Property Management Assistant may execute and approve contracts not in excess of \$300 for supplies, equipment, or services in conformity with applicable regulations and statutory authority and subject to availability of appropriations.

SEC. 4. *Revocation.* This order supercedes Order No. 1, as published in 28 F.R. 4679, dated May 9, 1963.

(National Park Service Order No. 14 (19 F.R. 8824), as amended; 39 Stat. 535, 16 U.S.C., Sec. 2; Midwest Region Order No. 3 (21 F.R. 1494))

Dated: December 6, 1965.

LEROY R. BROWN,
Superintendent, Jefferson National
Expansion Memorial.

[F.R. Doc. 66-245; Filed, Jan. 7, 1966;
8:47 a.m.]

[Order 2]

DINOSAUR NATIONAL MONUMENT

Administrative Assistant et al.; Delegation of Authority Regarding Purchasing

SECTION 1. *Administrative Assistant.* The Administrative Assistant may issue purchase orders not in excess of \$2,500 for supplies or equipment in conformity with applicable regulations and statutory authority and subject to availability of allotted funds.

SEC. 2. *Chief Park Ranger, Chief Park Naturalist, and Maintenance Superintendent.* The Chief Park Ranger, Chief Park Naturalist, and Maintenance Superintendent may issue purchase orders not in excess of \$100 for supplies or equipment in conformity with applicable regulations and statutory authority and subject to availability of allotted funds.

SEC. 3. *Revocation.* This Order supercedes Order No. 1, issued April 1, 1963. (National Park Service Order No. 14 (19 F.R. 8824), as amended; 39 Stat. 535, 16 U.S.C., Sec. 2; Midwest Region Order No. 3 (21 F.R. 1494))

Dated: December 7, 1965.

DANIEL J. TOBIN, JR.,
Superintendent,
Dinosaur National Monument.

[F.R. Doc. 66-246; Filed, Jan. 7, 1966;
8:47 a.m.]

DEPARTMENT OF COMMERCE

Office of the Secretary

[Dept. Order 109; Amdt. 1]

BUREAU OF PUBLIC ROADS

General Functions

The following amendment to the order was issued by the Secretary of Commerce on December 22, 1965. This material amends the material appearing at 29 F.R. 24-25 dated January 1, 1964.

Department Order 109, dated December 12, 1963, is hereby amended as follows:

1. SECTION 3. *Delegation of authority,* paragraph .01 is amended to read:

.01 Pursuant to the authority vested in the Secretary of Commerce by 23 U.S.C. 303(a) and Reorganization Plan No. 5 of 1950, and subject to such policies and directives as the Secretary of Commerce or the Under Secretary for Transportation may prescribe, the Federal Highway Administrator is hereby delegated the authority to perform the functions vested in the Secretary of Com-

merce under Title 23, United States Code, Highways, and under the Act approved July 14, 1960 (74 Stat. 526), 23 U.S.C. 313 Note, as amended, relating to National Driver Register Service, and under the Highway Beautification Act of 1965 (79 Stat. 1028), and all acts amendatory thereof, except with respect to the apportionment of Federal-aid highway funds among the States and the promulgation of regulations.

2. SEC. 4. *General functions,* paragraphs .01, .03, and .04 are amended to read:

.01 The Bureau of Public Roads shall carry out the responsibility and authority of the Secretary with respect to Federal and Federal-aid highway construction, administration, research and development, and planning. More particularly, the Bureau shall: (1) In cooperation with the States, the District of Columbia, and Puerto Rico, administer Federal laws pertaining to the completion of a National System of Interstate and Defense Highways and the construction of highways on the Federal-aid primary and secondary systems and their urban extensions, and providing for scenic development and road beautification of the Federal-aid highway systems; (2) in cooperation with the U.S. Forest Service of the Department of Agriculture and the State Highway departments, construct roads on the forest highway system; (3) construct selected main roads through public lands; (4) in cooperation with the Central American Republics, survey and construct the Inter-American Highway; and (5) conduct other programs as authorized.

.03 The Bureau of Public Roads shall conduct, directly or in cooperation with the States, programs of planning and research and development on all phases of highway improvement and use.

.04 The Bureau of Public Roads shall promote the establishment of highway safety programs by the States, in accordance with uniform standards approved by the Secretary, designed to reduce traffic accidents on highways in the Federal-aid system; maintain liaison with public and private groups concerned with highway safety; and maintain a national register containing information for State driver licensing authorities regarding drivers whose licenses have been revoked or suspended for certain highway safety code violations.

Effective date. December 22, 1965.

DAVID R. BALDWIN,
Assistant Secretary
for Administration.

[F.R. Doc. 66-223; Filed, Jan. 7, 1966;
8:45 a.m.]

ATOMIC ENERGY COMMISSION

[Docket No. 50-5]

PENNSYLVANIA STATE UNIVERSITY

Notice of Issuance of Amendment to Facility License

Please take notice that, no request for a hearing or petition to intervene having been filed following publication of the notice of proposed action in the *FEDERAL REGISTER*, the Atomic Energy Commission has issued, effective as of the date of issuance, Amendment No. 16 to License No. R-2 to The Pennsylvania State University authorizing operation of the Pennsylvania State Reactor with the TRIGA Mark III nuclear core and control system. The reactor is located on the University's campus at University Park, Pa.

The license was issued substantially as set forth in the notice of proposed issuance of amendment to facility license published in the *FEDERAL REGISTER* December 14, 1965, 30 F.R. 15376, with the exception of (1) minor editorial modifications in the license, (2) minor revisions in the Technical Specifications, and (3) as described in an application amendment dated December 23, 1965, a change in the location of four drilled holes in the central thimble to facilitate removal of water from the thimble for certain experiments, and a change in operation of the reactor to permit operation with the in-core region of the central experiment thimble filled with air or water rather than only with water as described in the application. The changes involve no significant hazards considerations greater than those previously evaluated since loss of the void in the in-core region would not result in a greater insertion of reactivity than will be permitted during authorized operation.

Dated at Bethesda, Md., this 30th day of December 1965.

For the Atomic Energy Commission.

R. L. DOAN,
Director,

Division of Reactor Licensing.

[F.R. Doc. 66-221; Filed, Jan. 7, 1966;
8:45 a.m.]

CIVIL AERONAUTICS BOARD

[Docket No. 16829; Order E-23070]

FLYING TIGER LINE INC.

Blocked-Space Parcel Post Rates; Order of Investigation and Suspension

Adopted by the Civil Aeronautics Board at its office in Washington, D.C., on the 4th day of January 1966.

By tariff revisions filed bearing the posting date of December 6, 1965, and marked to become effective January 20, 1966, The Flying Tiger Line Inc. (Tiger), proposes to establish rates for shipments affixed with U.S. postage by the shipper, consigned to a post office at destination.

The shipments would receive blocked-space service between Chicago and New York/Newark, on the one hand, and Los Angeles and San Francisco/Oakland, on the other, in both directions. Blocked-space service involves agreements under which shippers guarantee to ship specified amounts each week for designated periods while carriers guarantee to make the necessary space available. The rates would involve substantial reductions below the currently applicable blocked-space rates.

In support of its tariff and in its answer to the complaint filed by Continental Air Lines, Inc. (Continental), described below, Tiger asserts that the purpose of the filing is to enable parcel post traffic to be combined with other types of traffic into blocked-space movements to enable shippers to obtain lower rates for larger shipments, thereby resulting in considerable savings and convenience to large shippers. The carrier also claims that Continental has not advanced any data in support of its allegation of adverse effect of the proposal.

Continental's complaint asserts that Tiger's proposal is contrary to the Board's decision in the Westbound Parcel Post Case, Order E-20040, dated September 25, 1963, which requires that parcel post rates be on a space-available basis; that all carriers currently publish parcel post rates on this basis; and that the proposal would have an adverse effect on Continental, while the shipping public would gain very little by having Tiger monopolize the market.

Upon consideration of the complaint and other relevant matters, the Board finds that the proposed tariff revisions, to the extent that they involve westbound rates, may be unjust, unreasonable, or unduly discriminatory, or unduly preferential, or unduly prejudicial, or otherwise unlawful, and should be investigated. The foregoing westbound rates would involve significant reductions below the current applicable blocked-space general commodity rates, such reductions ranging from 19 to 41 percent. The rates proposed would be at the current parcel post rates in the markets indicated except for the movements from New York/Newark, where they would reflect a reduction of 14 percent. However, the parcel post rates in effect, and consequently the rates proposed, are at a relatively low level. The yields from the proposed rates would range from 8.6 to 13.5 cents per ton-mile.

The examiner's decision setting minimum westbound parcel post rates, which the Board adopted in Order E-20040, supra, noted that low rates of the type established were justified on the ground, among others, that the traffic utilizes available empty cargo space. In order to assure that parcel post traffic would utilize only such empty space and to differentiate the lower value of service under parcel post rates from regular service, the decision required that shipments be accepted only on a space-available basis.

Tiger's proposal would eliminate the tariffs' current space-available require-

ment for westbound parcel post traffic receiving blocked-space service in the markets involved, except for amounts of traffic above that contracted for by shippers and "blocked" by the carriers. In other words, the traffic would be upgraded to guaranteed space, with the foregoing exception. We have serious reservations whether rates at the levels proposed would be economic except on a space-available basis. It should be noted that Tiger makes no claim that the proposed rate reductions would attract additional amounts of traffic. The carrier asserts merely that shippers would receive considerable savings and added convenience.

We also note that Tiger, only a few months ago, petitioned the Board to prescribe a minimum rate order on the ground that the current rates are too low. In Order E-22973, dated December 7, 1965, dismissing the petition, the Board noted that a major reason for Tiger's lower yields has been the lower-rated services provided by Tiger. The reductions herein proposed by Tiger would seem to aggravate the situation. In view of the potential significant impact upon carriers' revenues that might result from the application of the proposal, the Board has also concluded to suspend the proposed westbound rates pending investigation.

With respect to the eastbound rates proposed, however, the Board finds that the complaint does not set forth facts sufficient to warrant investigation, and the request therefor, and consequently the request for suspension, will be dismissed. The Board's decision on parcel post rates dealt only with westbound rates. Tiger's current eastbound parcel post tariffs have no space-available restriction in the markets involved. Thus, the current proposal would not effect any change in this respect. It is true that the reductions from current eastbound blocked-space general commodity rates would be substantial, ranging from 19 to 32 percent. However, no change in the rates for eastbound parcel post traffic is in issue, but only the change from standard to blocked space service. Inasmuch as blocked-space service requires guaranteed amounts of traffic offerings by the shipper, we can find no basis for investigating the eastbound rates proposed.

Accordingly, pursuant to the Federal Aviation Act of 1958 and particularly sections 204(a) and 1002 thereof,

It is ordered, That:

1. An investigation is instituted to determine whether the rates and provisions described in Appendix A hereto and rules, regulations, or practices affecting such rates and provisions are, or will be, unjust, or unreasonable, unjustly discriminatory, unduly preferential, unduly prejudicial, or otherwise unlawful, and if found to be unlawful, to determine and prescribe the lawful rates and provisions and rules, regulations or practices affecting such rates and provisions;

2. Pending hearing and decision by the Board, the rates and provisions described in Appendix A hereto¹ are suspended and

¹ Appendix filed as part of original.

their use deferred to and including April 19, 1966, unless otherwise ordered by the Board and that no changes be made therein during the period of suspension except by order or special permission of the Board;

3. The complaint of Continental Air Lines, Inc., in Docket 16743 is dismissed, except to the extent granted herein;

4. The proceeding herein be assigned for hearing before an examiner of the Board at a time and place hereafter to be designated; and

5. Copies of this order shall be filed with the tariffs and served upon Continental Air Lines, Inc., and The Flying Tiger Line, Inc., which are hereby made parties to this proceeding.

This order will be published in the FEDERAL REGISTER.

By the Civil Aeronautics Board.

[SEAL] HAROLD R. SANDERSON,
Secretary.

[F.R. Doc. 66-255; Filed, Jan. 7, 1966;
8:48 a.m.]

[Docket No. 16691]

KAR-AIR OY

Notice of Hearing

Application of KAR-AIR OY for the amendment and renewal of its foreign air carrier permit so as to authorize it to engage in charter foreign air transportation with respect to persons and their accompanied baggage and property between any point or points in Finland and any point or points in the United States.

Notice is hereby given, pursuant to the provisions of the Federal Aviation Act of 1958, as amended, that a hearing in the above-entitled proceeding will be held on January 17, 1966, at 10 a.m., e.s.t., in Room 726, 1825 Connecticut Avenue NW., Washington, D.C., before Examiner Leslie G. Donahue.

For information concerning the issues involved and other details in this proceeding, interested persons are referred to the prehearing conference report served on December 29, 1965, and other documents which are in the docket of this proceeding on file in the Docket Section of the Civil Aeronautics Board.

Dated at Washington, D.C., January 3, 1966.

[SEAL] LESLIE G. DONAHUE,
Hearing Examiner.

[F.R. Doc. 66-256; Filed, Jan. 7, 1966;
8:48 a.m.]

FEDERAL DEPOSIT INSURANCE CORPORATION

INSURED BANKS

Joint Call for Report of Condition

Pursuant to the provisions of section 7(a) (3) of the Federal Deposit Insurance

Act, each insured bank is required to make a Report of Condition as of the close of business December 31, 1965, to the appropriate agency designated herein, within 10 days after notice that such report shall be made: *Provided*, That if such reporting date is a nonbusiness day for any bank, the preceding business day shall be its reporting date.

Each national bank and each bank in the District of Columbia shall make its original Report of Condition on Office of the Comptroller Form, Call No. 456,¹ and shall send the same to the Comptroller of the Currency, and shall send a signed and attested copy thereof to the Federal Deposit Insurance Corporation. Each insured State bank which is a member of the Federal Reserve System, except a bank in the District of Columbia, shall make its original Report of Condition on Federal Reserve Form 105—Call 178,¹ and shall send the same to the Federal Reserve Bank of the District wherein the bank is located, and shall send a signed and attested copy thereof to the Federal Deposit Insurance Corporation. Each insured State bank not a member of the Federal Reserve System, except a bank in the District of Columbia and a mutual savings bank, shall make its original Report of Condition on FDIC Form 64—Call No. 74,¹ and shall send the same to the Federal Deposit Insurance Corporation.

The original Report of Condition required to be furnished hereunder to the Comptroller of the Currency and the copy thereof required to be furnished to the Federal Deposit Insurance Corporation shall be prepared in accordance with "Instructions for preparation of Reports of Condition by National Banking Associations," dated January 1961, and any amendments thereto.¹ The original Report of Condition required to be furnished hereunder to the Federal Reserve Bank of the district wherein the bank is located and the copy thereof required to be furnished to the Federal Deposit Insurance Corporation shall be prepared in accordance with "Instructions for the preparation of Reports of Condition by State Member Banks of the Federal Reserve System," dated February 1961, and any amendments thereto.¹ The original Report of Condition required to be furnished hereunder to the Federal Deposit Insurance Corporation shall be prepared in accordance with "Instructions for the preparation of Report of Condition on Form 64, by insured State banks not members of the Federal Reserve System," dated January 1961, and any amendments thereto.¹

Each insured mutual savings bank not a member of the Federal Reserve System shall make its original Report of Condition on FDIC Form 64 (Savings),¹ prepared in accordance with "Instructions for the preparation of Report of Condition on Form 64 (Savings) and Report of

¹ Filed as part of original document.

Income and Dividends on Form 73 (Savings) by Mutual Savings Banks," dated December 1962,¹ and shall send the same to the Federal Deposit Insurance Corporation.

FEDERAL DEPOSIT INSURANCE
CORPORATION,
K. A. RANDALL,
Chairman.

JAMES J. SAXON,
Comptroller of the Currency.

BOARD OF GOVERNORS OF THE
FEDERAL RESERVE SYSTEM,
WILLIAM McC. MARTIN, Jr.,
Chairman.

[F.R. Doc. 66-252; Filed, Jan. 7, 1966;
8:47 a.m.]

INSURED MUTUAL SAVINGS BANKS NOT MEMBERS OF FEDERAL RE- SERVE SYSTEM

Call for Annual Report of Income and Dividends

Pursuant to the provisions of section 7(a) of the Federal Deposit Insurance Act each insured mutual savings bank not a member of the Federal Reserve System is required to make a Report of Income and Dividends for the calendar year 1965 on Form 73 (Savings), revised December 1951,¹ to the Federal Deposit Insurance Corporation within 10 days after notice that such report shall be made. Said Report of Income and Dividends shall be prepared in accordance with "Instructions for the preparation of Report of Condition on Form 64 (Savings) and Report of Income and Dividends on Form 73 (Savings)," dated December 1962.¹

FEDERAL DEPOSIT INSURANCE
CORPORATION,
[SEAL] E. F. DOWNEY,
Secretary.

[F.R. Doc. 66-253; Filed, Jan. 7, 1966;
8:47 a.m.]

INSURED STATE BANKS NOT MEM- BERS OF FEDERAL RESERVE SYS- TEM

Call for Annual Report of Income and Dividends

Pursuant to the provisions of section 7(a) of the Federal Deposit Insurance Act each insured State bank not a member of the Federal Reserve System, except a bank in the District of Columbia and a mutual savings bank, is required to make a Report of Income and Dividends for the calendar year 1965 on Form 73 (revised December 1961)¹ to the Federal Deposit Insurance Corporation within 10 days after notice that such report shall be made. Said Report of Income and Dividends shall be prepared in accordance with "Instructions for the preparation of Report of Income and

Dividends on Form 73," dated December 1961.¹

FEDERAL DEPOSIT INSURANCE CORPORATION,

[SEAL] E. F. DOWNEY,
Secretary.

[F.R. Doc. 66-254; Filed, Jan. 7, 1966;
8:47 a.m.]

FEDERAL POWER COMMISSION

[Docket No. RI66-222, etc.]

CLEARY PETROLEUM, INC., ET AL.

Order Providing for Hearings on and Suspension of Proposed Changes in Rates^{1a}

DECEMBER 30, 1965.

The Respondents named herein have filed proposed increased rates and

charges of currently effective rate schedules for sales of natural gas under Commission jurisdiction, as set forth in Appendix A hereof.

The proposed changed rates and charges may be unjust, unreasonable, unduly discriminatory, or preferential, or otherwise unlawful.

The Commission finds: It is in the public interest and consistent with the Natural Gas Act that the Commission enter upon hearings regarding the lawfulness of the proposed changes, and that the supplements herein be suspended and their use be deferred as ordered below.

The Commission orders: (A) Under the Natural Gas Act, particularly sections 4 and 15, the regulations pertaining thereto (18 CFR Ch. I), and the Commission's rules of practice and procedure, public hearings shall be held concerning the lawfulness of the proposed changes.

(B) Pending hearings and decisions thereon, the rate supplements herein are suspended and their use deferred until date shown in the "Date Suspended Until" column, and thereafter until made effective as prescribed by the Natural Gas Act.

(C) Until otherwise ordered by the Commission, neither the suspended supplements, nor the rate schedules sought to be altered, shall be changed until disposition of these proceedings or expiration of the suspension period.

(D) Notices of intervention or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C., 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 and 1.37(f)) on or before February 15, 1966.

By the Commission.

[SEAL] JOSEPH H. GUTRIE,
Secretary.

APPENDIX A

Docket No.	Respondent	Rate schedule No.	Supplement No.	Purchaser, and producing area	Amount of annual increase	Date filing tendered	Effective date unless suspended	Date suspended until—	Cents per Mcf		Rate in effect subject to refund in docket Nos.
									Rate in effect	Proposed increased rate	
RI66-222	Cleary Petroleum, Inc. (Operator), et al., 310 Kermac Bldg., Oklahoma City, Okla., 73102.	* 11	2	Oklahoma Natural Gas Gathering Corp. ² (Northwest Ringwood-East Cleo Field, Major County, Okla.) (Oklahoma "Other" Area).	\$9,705	11- 8-65	* 1- 1-66	6- 1-66	7.0	* 12.0	
RI66-223	Tidewater Oil Co., Post Office Box 1404, Houston, Tex.	* 117	2	Oklahoma Natural Gas Gathering Corp. ² (Ringwood Field, Major County, Okla.) (Oklahoma "Other" Area).	428	11- 8-65	* 1- 1-66	6- 1-66	11.0	* 12.0	
RI66-224	Shell Oil Co., 50 West 50th St., New York 20, N.Y.	* 277	2	do. ³	2,964	11-15-65	* 1- 1-66	6- 1-66	11.0	* 12.0	
RI66-225	Gulf Oil Corp., Post Office Box 1589, Tulsa, Okla., 74102.	* 222	3	do. ³	80	11-24-65	* 1- 1-66	6- 1-66	11.0	* 12.0	
RI66-226	Cities Service Oil Co., Cities Service Bldg., Bartlesville, Okla., 74004.	* 150	3	do. ³	61	11-29-65	* 1- 1-66	6- 1-66	11.0	* 12.0	
RI66-227	Oklahoma Natural Gas Co. (Operator), et al., Post Office Box 871, Tulsa, Okla., 74102.	* 15	3	do. ³	5,162	12- 1-65	* 1- 1-66	6- 1-66	11.0	* 12.0	
RI66-228	Livingston Oil Co. (Operator), et al., Post Office Box 1797, Tulsa, Okla.	1	13	do. ³	11,729	11-30-65	* 1- 1-66	6- 1-66	11.0	* 12.0	
	do.	3	3	do. ³	200	11-30-65	* 1- 1-66	6- 1-66	11.0	* 12.0	
	do.	7	3	do. ³	50	11-30-65	* 1- 1-66	6- 1-66	11.0	* 12.0	
	do.	8	6	do. ³	350	11-30-65	* 1- 1-66	6- 1-66	11.0	* 12.0	
RI66-229	do.	4	5	do. ³	1,150	11-30-65	* 1- 1-66	6- 1-66	11.0	* 12.0	
	do.	5	3	do. ³	270	11-30-65	* 1- 1-66	6- 1-66	11.0	* 12.0	
	do.	6	3	do. ³	3,000	11-30-65	* 1- 1-66	6- 1-66	11.0	* 12.0	
	do.	9	6	do. ³	350	11-30-65	* 1- 1-66	6- 1-66	11.0	* 12.0	
RI66-230	The Bradley Producing Corp., 313 North Main St., Wellsville, N.Y., 14895.	10	1	do. ³	1,250	12- 6-65	* 1- 6-66	6- 6-66	11.0	* 12.0	

² Oklahoma Natural Gas Gathering Corp. is classed as a pipeline company in its certificate (CI61-1408) for resale of gas to Cities Service Gas Co. at an initial price of 17.5 cents. National Fuels Corp. (successor to Warren Petroleum Corp.) jointly purchases gas for liquids only.

³ The stated effective date is the effective date requested by Respondent.

⁴ Periodic rate increase.

⁵ Pressure base is 14.65 p.s.i.a.

⁶ Basic contract dated after Sept. 28, 1960, the date of issuance of General Policy Statement No. 61-1.

⁷ Buyer is a fully owned subsidiary of seller.

⁸ The stated effective date is the first day after expiration of the required statutory notice.

The Bradley Producing Corp. (Bradley) requests that its proposed rate increase be permitted to become effective on January 1, 1966, the contractually provided effective date. Good cause has not been shown for waiving the 30-day notice requirement provided in section 4(d) of the Natural Gas Act to permit an earlier effective date for Bradley's rate filing and such request is denied. Cleary

Petroleum, Inc. (Operator), et al. (Cleary), requests that its proposed rate increase be made effective without suspension or in the alternative that the suspension period be limited to 1 day. Good cause has not been shown for granting Cleary's request for limiting to 1 day the suspension period with respect to its rate filing and such request is denied.

Oklahoma Natural Gas Gathering Corp. (Oklahoma Natural) gathers and transports the subject gas to the process-

ing plant and picks up the gas after processing and delivers such gas 23 miles away to Cities Service Gas Co. (Cities Service) in Garfield County (the adjacent county). By order issued March 30, 1962, in Docket No. CI61-1408, Oklahoma Natural was issued permanent authorization to construct the facilities and make the sale to Cities Service at 17.5 cents per Mcf. Oklahoma Natural was directed by such order to make all future filings under the Commission's regulations governing pipeline companies.

¹ Filed as part of original document.

^{1a} Does not consolidate for hearing or dispose of the several matters herein.

Oklahoma Natural's contract dated March 23, 1961, with Cities Service states that the initial price for the first 5 years is subject to increase based upon the cost of purchased gas and that after such time increases will be based upon Oklahoma Natural's total cost of service. On December 1, 1965, Oklahoma Natural filed its related proposed increase from 17.5 cents to 18.5 cents per Mcf based on the proposed increase cost of purchased gas. Oklahoma Natural proposes an effective date of January 1, 1966, for its proposed rate increase. The due date for the periodic increase under the producers' contracts is January 1, 1966.

All of the producers' contracts are dated after the issuance of the Commission's Statement of General Policy No. 61-1. The proposed increases exceed the area increased rate ceiling of 11.0 cents per Mcf but are below the area initial rate ceiling of 15.0 cents per Mcf. Where gas purchase contracts are entered into subsequent to the issuance of the Statement of General Policy No. 61-1, as here, it is our general policy to suspend producer increases below the initial rate ceiling for only 1 day. However, since the purchaser's rate increase, which should be suspended for 5 months, is related directly to the increases of its producers, we conclude that the producers' increases should also be suspended for 5 months.

[F.R. Doc. 66-173; Filed, Jan. 7, 1966; 8:45 a.m.]

[Docket No. CP66-204]

ATLANTIC SEABOARD CORP.

Notice of Application

JANUARY 3, 1966.

Take notice that on December 20, 1965, Atlantic Seaboard Corp. (Applicant), Post Office Box 1273, Charleston, W. Va., 25325, filed in Docket No. CP66-204 an application for a certificate of public convenience and necessity authorizing the construction and operation of approximately 20.3 miles of 36-inch gas transmission pipeline looping its existing facilities at its Lost River Compressor Station, Hardy County, W. Va., in a westerly direction a distance of approximately 12.8 miles and in an easterly direction a distance of approximately 7.5 miles, all as more fully set forth in the application which is on file with the Commission and open to public inspection.

The application states that Applicant's estimated gas requirements on the design peak day of the 1966-1967 winter period will increase approximately 72,300 Mcf over and above the estimated gas requirements for the design peak day of the 1965-1966 winter period and that the capacity of existing facilities will be deficient by approximately 65,300 Mcf on the design day. The application further states that because of the continued development of Applicant's storage program, together with a proposed increase in its Contract Demand with United Fuel Gas Co., sufficient additional volumes of natural gas will be available to meet the increased requirements of its existing customers. Applicant states, however, that the proposed additional downstream

pipeline capacity is required in order to move the volumes of gas available to market.

The total estimated cost of the proposed project is estimated to be approximately \$4,225,100, which cost will be financed through the sale of common stock and promissory notes by Applicant to The Columbia Gas System, Inc.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C., 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (157.10) on or before January 27, 1966.

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and procedure, a hearing will be held without further notice before the Commission on this application if no protest or petition to intervene is filed within the time required herein, if the Commission on its own review of the matter finds that a grant of the certificate is required by the public convenience and necessity. If a protest or petition for leave to intervene is timely filed, or if the Commission on its own motion believes that a formal hearing is required, further notice of such hearing will be duly given.

Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

JOSEPH H. GUTRIE,
Secretary.

[F.R. Doc. 66-232; Filed, Jan. 7, 1966; 8:46 a.m.]

[Docket No. C161-282]

GULF RESOURCES, INC., AND NATURAL GAS GATHERING CO., INC.

Notice of Application

JANUARY 3, 1966.

Take notice that on August 24, 1960, Gulf Resources, Inc., and Natural Gas Gathering Co., Inc. (Applicants), D-205 Petroleum Center, 900 Northeast Loop Expressway, San Antonio, Tex., 78209, filed in Docket No. C161-282 an application as supplemented on February 12, 1963, and August 13, 1965, pursuant to section 7(c) of the Natural Gas Act for a certificate of public convenience and necessity authorizing Applicants to construct and operate facilities and transport natural gas in interstate commerce, all as more fully set forth in the application, as supplemented, which is on file with the Commission and open to public inspection.

Applicants seek authorization to construct and operate approximately 75 miles of pipeline and appurtenant facilities to gather and transport natural gas to be purchased from producers thereof by Tennessee Gas Transmission Co. (Tennessee) in various fields in Starr and Zapata Counties, Tex. Applicants will deliver the gas to Tennessee in the Zim Field area, Zapata County, Tex. Applicants propose to gather and trans-

port gas for Tennessee at a rate of 2.85 cents per Mcf at 14.65 p.s.i.a.

Estimated cost of the facilities proposed to be constructed and operated by Applicants is \$2,600,000 which amount Applicants will obtain through debt and equity financing.

Applicants have submitted a pipeline-type application and by letter dated November 12, 1965, they agree to accept a certificate classifying them as pipeline companies and request that their contract with Tennessee be accepted as a special rate schedule.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C., 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (157.10) on or before January 27, 1966.

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and procedure, a hearing will be held without further notice before the Commission on this application if no protest or petition to intervene is filed within the time required herein, if the Commission on its own review of the matter finds that a grant of the certificate is required by the public convenience and necessity. If a protest or petition for leave to intervene is timely filed, or if the Commission on its own motion believes that a formal hearing is required, further notice of such hearing will be duly given. Any party which heretofore has filed a notice of intervention or petition to intervene shall file again if it desires to participate in any proceeding on the application as supplemented.¹

Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

JOSEPH H. GUTRIE,
Secretary.

[F.R. Doc. 66-233; Filed, Jan. 7, 1966; 8:46 a.m.]

[Docket No. CP66-202]

HUMBLE GAS TRANSMISSION CO.

Notice of Application

JANUARY 3, 1966.

Take notice that on December 20, 1965, Humble Gas Transmission Co. (Applicant), 1700 Commerce Building, New Orleans, La., 70112, filed in Docket No. CP66-202 an application pursuant to section 7(b) of the Natural Gas Act for permission and approval to abandon certain natural gas facilities, all as more fully set forth in the application which is on file with the Commission and open to public inspection.

Specifically, Applicant seeks permission and approval to abandon by removal the facilities originally installed to serve

¹ A notice of the filing of the subject application was issued May 24, 1963, and published in the FEDERAL REGISTER on June 1, 1963 (28 F.R. 5448).

the following customers: (1) Kaiser Aluminum & Chemical Corp. (Kaiser Aluminum), (2) Ideal Cement Co. (Ideal Cement), (3) Foster-Grant Co., Inc. (Foster-Grant), (4) The Solvay Process Division, Allied Chemical & Dye Corp. (Allied Chemical). Said facilities consist of 2,092 feet of 10 $\frac{3}{4}$ -inch pipeline and an appurtenant meter station, 1,984 feet of 10 $\frac{3}{4}$ -inch pipeline and two meter settings including short laterals.

Applicant states that service to Kaiser Aluminum and Ideal Cement Co. was made originally from Applicant's jurisdictional Fowler-Baton Rouge System. Applicant further states that on November 5, 1951, these customers were disconnected from the Fowler-Baton Rouge System and connected to Applicant's non-jurisdictional Baton Rouge-West System and that the subject facilities were transferred out of the jurisdictional accounts. However, Applicant failed to make a timely application for abandonment of said service and facilities.

The application states that service to Foster-Grant has been made through nonjurisdictional facilities since July 14, 1957, and that service to Allied Chemical was commenced during March 1935, and, the contract covering such sale will terminate as of the end of the year 1965.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C., 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (157.10) on or before January 27, 1966.

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and procedure, a hearing will be held without further notice before the Commission on this application if no protest or petition to intervene is filed within the time required herein, if the Commission on its own review of the matter finds that a grant of permission and approval for the proposed abandonment is required by the public convenience and necessity. If a protest or petition for leave to intervene is timely filed, or if the Commission on its own motion believes that a formal hearing is required, further notice of such hearing will be duly given.

Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

JOSEPH H. GUTRIDE,
Secretary.

[F.R. Doc. 66-234; Filed, Jan. 7, 1966;
8:46 a.m.]

[Docket No. CP66-203]

LONE STAR GAS CO. Notice of Application

JANUARY 3, 1966.

Take notice that on December 20, 1965, Lone Star Gas Co. (Applicant), 301

South Harwood Street, Dallas, Tex., 75201, filed in Docket No. CP66-203 an application pursuant to section 7(b) of the Natural Gas Act for permission and approval to abandon the operation of certain natural gas facilities for the transportation of natural gas in interstate commerce, all as more fully set forth in the application which is on file with the Commission and open to public inspection.

Applicant states that the facilities proposed for abandonment are various lateral supply pipelines and related facilities extending from Applicant's existing pipeline system to a single well or to a single point in the area of production. Applicant further states that these lines and facilities, located on portions of Applicant's system and operated for the transportation of natural gas in interstate commerce, are no longer needed or required to transport gas into Applicant's system due to the depletion of reserves or the decline in reservoir pressure of the various sources of supply connected.

Specifically, Applicant seeks permission and approval to abandon the operation of the following pipelines and appurtenant facilities which would be removed and salvaged: (1) 194 feet of 3-inch pipeline, 109 feet of 4-inch pipeline with 4-inch metering facilities and 66 feet of 2-inch pipeline with 2-inch metering facilities, all located in Robberson Field, Garvin County, Okla., (2) 188 feet of 4-inch pipeline located in the Northeast Tucker Field, Stephens County, Okla., (3) 1,460 feet of 4-inch pipeline located in the Northeast Healdton Field, Jefferson County, Okla., (4) 203 feet of 2-inch pipeline located in the Sho-Vel-Tum Field, Stephens County, Okla., (5) 8 feet of 4-inch pipeline and 4 feet of 3-inch pipeline located in the Cruce Field, Stephens County, Okla., (6) 27 feet of 3-inch pipeline with 3-inch metering facilities located in the Banner Church Field, Stephens County, Okla., (7) 1,162 feet of 2-inch pipeline located in the Sherman Field, Grason County, Tex., (8) 164 feet of 4-inch pipeline with metering facilities located in the Northeast Greenville Oil Field, Love County, Okla., (9) 35,003 feet of 6-inch pipeline with 6-inch metering facilities located in the Good Omen Field, Smith County, Tex.

Applicant states that the proposed abandonment would not result in the abandonment or any diminution of natural gas service to any city, town, community or customer or lessen the service presently being rendered by Applicant.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C., 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (157.10) on or before January 27, 1966.

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and pro-

cedure, a hearing will be held without further notice before the Commission on this application if no protest or petition to intervene is filed within the time required herein, if the Commission on its own review of the matter finds that a grant of permission and approval for the proposed abandonment is required by the public convenience and necessity. If a protest or petition for leave to intervene is timely filed, or if the Commission on its own believes that a formal hearing is required, further notice of such hearing will be duly given.

Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

JOSEPH H. GUTRIDE,
Secretary.

[F.R. Doc. 66-235; Filed, Jan. 7, 1966;
8:46 a.m.]

[Docket No. CP66-130]

MISSISSIPPI RIVER TRANSMISSION CORP. AND STORAGE CORP.

Further Notice of Application

JANUARY 3, 1966.

Take notice that on December 20, 1965, Mississippi River Transmission Corp. (Mississippi) and Storage Corp. (Storage) filed in Docket No. CP66-130 a supplement to the application filed by Mississippi in said docket on October 26, 1965, by requesting that Storage be joined as applicant in the instant proceeding and that Storage be granted a certificate of public convenience and necessity authorizing it to sell to Mississippi gas withdrawn from underground storage in the St. Jacob Field, Madison, and St. Clair Counties, Ill., for 1 year or for such shorter period until Mississippi is authorized to acquire and operate the interests of Storage in the St. Jacob Field under a certificate of public convenience and necessity, all as more fully set forth in the supplement which is on file with the Commission and open to public inspection.

On October 26, 1965, Mississippi filed in the subject docket an application for, inter alia, a certificate of public convenience and necessity authorizing it to acquire and operate in its jurisdictional business the storage properties of Storage Corp., a wholly owned, nonjurisdictional subsidiary, and for the interim sale of natural gas in interstate commerce by Storage to Mississippi. By reason of the fact that the proposed sale of natural gas by Storage to Mississippi would be in interstate commerce and would cause Storage to fall within the jurisdiction of the Commission, Mississippi and Storage hereby seek to join Storage in the instant proceeding and request that Storage be issued a certificate of public convenience and necessity as stated above.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C., 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the

regulations under the Natural Gas Act (157.10) on or before January 27, 1966.

JOSEPH H. GUTRIDE,
Secretary.

[F.R. Doc. 66-236; Filed, Jan. 7, 1966;
8:46 a.m.]

[Docket No. CP64-255 (Phase I)]

NORTHERN NATURAL GAS CO.

Notice of Petition To Amend

JANUARY 3, 1966.

Take notice that on December 23, 1965, Northern Natural Gas Co. (Petitioner), 2223 Dodge Street, Omaha 2, Nebr., filed in Docket No. CP64-255 (Phase I) a petition to amend the certificate of public convenience and necessity issued in said docket on December 21, 1964, and amended on June 15, June 18, and August 26, 1965, by requesting a revision in the facilities authorized and an extension of time to construct such facilities, all as more fully set forth in the petition to amend which is on file with the Commission and open to public inspection.

The aforementioned order of the Commission issued in Docket No. CP64-255 (Phase I) as amended authorized Petitioner to construct, inter alia, 10.6 miles of 30-inch loop pipeline north of the Beatrice, Nebr., Compressor Station at an estimated cost of \$1,189,500, for service to Hanna Mining Co.'s (Hanna) Ore Processing Plant near Cooley, Minn. By the instant filing, Petitioner seeks amendment of said order by deleting the above described facilities attributable to Hanna and constructing instead 10.8 miles of 30-inch loop pipeline north of Tescott, Kansas at an estimated cost of \$1,194,800. Petitioner also requests that the time within which the facilities must be constructed be extended for one year to December 21, 1966, in that service to Hanna is not expected to commence until November 1, 1966.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C., 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (157.10) on or before January 28, 1966.

JOSEPH H. GUTRIDE,
Secretary.

[F.R. Doc. 66-237; Filed, Jan. 7, 1966;
8:46 a.m.]

[Docket No. CP65-392]

SOUTH GEORGIA NATURAL GAS CO.

Notice of Petition To Amend

JANUARY 3, 1966.

Take notice that on December 22, 1965, South Georgia Natural Gas Co. (Petitioner), 1414 Brown-Marx Building, Birmingham, Ala., 35203, filed in Docket No. CP65-392 a petition to amend the order of the Commission issued in said docket July 27, 1965, by requesting authorization to construct and operate a 6-inch pipeline from Jasper Junction, Fla., to the Occidental Corp. of Florida (Occidental) in lieu of the 4-inch pipe-

line presently authorized for construction and operation between the same points and to provide two delivery points for Occidental in lieu of the one presently authorized. Petitioner also requests that the time within which the facilities are to be constructed and placed in actual operation as set forth in the aforementioned order of the Commission issued on July 27, 1965, be extended from 8 months to 12 months from the date of said order. The proposals involved are more fully set forth in the petition to amend which is on file with the Commission and open to public inspection.

Petitioner states that Occidental's beneficiation plant proposed to be served by the aforementioned certificated 4-inch pipeline has been constructed and is now in operation and that Occidental is now in the process of constructing additional units approximately 3,000 feet west of the existing plant. Petitioner further states that because of the location of the additional units, the proposed location of Petitioner's 6-inch transmission line, and the mining operations in the area, the most practical method of making gas deliveries to the additional units is by a second delivery point, approximately 3,000 feet upstream from the originally authorized delivery point, on Petitioner's proposed 6-inch pipeline.

Petitioner now estimates the total cost of its proposed facilities to be \$625,000, an increase of \$79,000 over the \$546,000 originally estimated for the facilities presently authorized.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C., 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (157.10) on or before January 28, 1966.

JOSEPH H. GUTRIDE,
Secretary.

[F.R. Doc. 66-238; Filed, Jan. 7, 1966;
8:46 a.m.]

[Docket No. G-14587]

SOUTHERN NATURAL GAS CO.

Notice of Petition To Amend

JANUARY 3, 1966.

Take notice that on December 22, 1965, Southern Natural Gas Co. (Petitioner), Post Office Box 2563, Birmingham, Ala., 35202, filed in Docket No. G-14587 a petition to amend the order of the Commission issued in said docket August 7, 1959, as amended by orders issued January 25, 1962, and July 1, 1964, in said docket by requesting authorization for the transportation and delivery of up to 2,900 Mcf of natural gas per day to Hunt Oil Co. (Hunt) at Hunt's refinery in Tuscaloosa, Ala., in lieu of the 1,800 Mcf presently authorized, all as more fully set forth in the petition to amend which is on file with the Commission and open to public inspection.

The petition states that Hunt has advised Petitioner that due to expanded capacity of its refinery, Hunt's natural gas requirements have increased from a

maximum of approximately 1,800 Mcf of gas per day to a maximum of approximately 2,900 Mcf per day. The petition further states that Petitioner and Hunt have entered into an amendatory agreement, dated November 10, 1965, providing, subject to appropriate authorization by the Commission, for delivery of the increased quantities of interruptible gas specified above.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C., 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (157.10) on or before January 28, 1966.

JOSEPH H. GUTRIDE,
Secretary.

[F.R. Doc. 66-239; Filed, Jan. 7, 1966;
8:46 a.m.]

[Docket No. RI66-231]

SOUTHLAND ROYALTY CO.

Order Granting Motion for Reconsideration, Accepting Conditionally Notice of Change for Filing and Providing for Hearing on and Suspension of Proposed Change in Rate

JANUARY 3, 1966.

Southland Royalty Co. (Southland) filed a motion for reconsideration on December 6, 1965, of the Commission's undocketed order issued September 10, 1965, rejecting, inter alia, a proposed rate increase from 15.6488 cents to 16.6584 cents per Mcf¹ tendered on August 20, 1965, by Southland for the sale of gas-well gas and low pressure flash gas to El Paso Natural Gas Co. under its FPC Gas Rate Schedule No. 14 in the Permian Basin Area of Texas. The contract involved here was executed prior to January 1, 1961, and thus covers a sale of old gas under Opinion No. 468. Southland's proposed rate, which exceeds the applicable just and reasonable rate ceilings determined in Opinion No. 468 for the sale of gas in the Permian Basin Area, was rejected for the reasons set forth in the order issued August 26, 1965, in *Socony Mobil Oil Co., Inc. (Operator), et al.* Details of Southland's proposed rate increase are set forth in Appendix A hereof.

On October 20, 1965, subsequent to the issuance of our rejection order, the Tenth Circuit in *Skelly Oil Co. v. F.P.C.* (C.A. 10 No. 8385, et al.) stayed through January 20, 1966, the effectiveness of Opinion Nos. 468 and 468-A as to Skelly Oil Co., Phillips Petroleum Co. and Warren Production Corp. By order issued November 12, 1965, we stayed, inter alia, until January 20, 1966, the effectiveness of paragraph (H) relating to the moratorium on rate increases as to all producers covered by these opinions which have not filed a petition for court review. Accordingly, we believe it appropriate to

¹ The proposed increased rate is designated as Supplement No. 9 to Southland's FPC Gas Rate Schedule No. 14.

grant Southland's motion for reconsideration of the Commission's order issued September 10, 1965, rejecting Southland's rate filing, and to conditionally accept such rate increase for filing and to simultaneously suspend it for a period of 5 months from September 20, 1965, the date it would have become effective had it not been rejected. Our acceptance of the instant rate increase filing is expressly conditioned to provide that the rate increase will be rejected, *ab initio*, in the event the court stay referred to above is dissolved or Opinion Nos. 468 and 468-A are upheld upon judicial review insofar as ordering paragraph (H) is concerned.

Southland requests that its proposed rate increase be permitted to become effective as of August 20, 1965. Good cause has not been shown for waiving the 30-day notice requirement provided in section 4(d) of the Natural Gas Act to permit an earlier effective date for Southland's rate filing and such request is denied.

The proposed changed rate and charge may be unjust, unreasonable, unduly dis-

crimatory, or preferential, or otherwise unlawful.

The Commission finds:

It is necessary and proper in the public interest and to aid in the enforcement of the provisions of the Natural Gas Act that the Commission enter upon a hearing concerning the lawfulness of the proposed change, and that Supplement No. 9 to Southland's FPC Gas Rate Schedule No. 14 be suspended and the use thereof deferred as hereinafter ordered.

The Commission orders:

(A) Pursuant to the authority of the Natural Gas Act, particularly sections 4 and 15 thereof, the Commission's rules of practice and procedure, and the regulations under the Natural Gas Act (18 CFR Ch. I), a public hearing shall be held upon a date to be fixed by notice from the Secretary concerning the lawfulness of the proposed increased rate and charge contained in Supplement No. 9 to Southland's FPC Gas Rate Schedule No. 14.

(B) Pending such hearing and decision thereon, Supplement No. 9 to

Southland's FPC Gas Rate Schedule No. 14 is conditionally accepted for filing, as noted above, and is hereby suspended and the use thereof deferred until February 20, 1966, and thereafter until such further time as it is made effective in the manner prescribed by the Natural Gas Act.

(C) Neither the supplement hereby suspended, nor the rate schedule sought to be altered thereby, shall be changed until this proceeding has been disposed of or until the period of suspension has expired, unless otherwise ordered by the Commission.

(D) Notices of intervention or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C., 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 and 1.37(f)) on or before February 15, 1966.

By the Commission.

[SEAL]

JOSEPH H. GUTRIDE,
Secretary.

APPENDIX A

Docket No.	Respondent	Rate schedule No.	Supplement No.	Purchaser and producing area	Amount of annual increase	Date filing tendered	Effective date unless suspended	Date suspended until—	Cents per Mcf		Rate in effect subject to refund in docket Nos.
									Rate in effect	Proposed increased rate	
RI66-231...	Southland Royalty Co., c/o Ross, Marsh & Foster 725 15th St. NW, Washington, D.C., 20005, Attn: Bernard A. Foster, Jr., Esq.	14	9	El Paso Natural Gas Co. (Clara Couch Field, Crockett County, Tex.) (R.R. District No. 7-C) (Permian Basin Area).	\$177	8-20-65	9-20-65	2-20-66	15.6488	16.6584	RI60-148.

¹ The stated effective date is the 1st day after expiration of the required statutory notice.

² Periodic rate increase.

³ Pressure base is 14.65 p.s.i.a.

⁴ Contract executed prior to Jan. 1, 1961.

[F.R. Doc. 66-240; Filed, Jan. 7, 1966; 8:46 a.m.]

FEDERAL RESERVE SYSTEM

INSURED BANKS

Joint Call for Report of Condition

CROSS REFERENCE: For a document relating to a joint call for report of condition of insured banks, see F.R. Doc. 66-252, Federal Deposit Insurance Corporation, *supra*.

INTERSTATE COMMERCE COMMISSION

[Notice 1282]

MOTOR CARRIER TRANSFER PROCEEDINGS

JANUARY 5, 1966.

Synopses of orders entered pursuant to section 212(b) of the Interstate Commerce Act, and rules and regulations prescribed thereunder (49 CFR Part 179), appear below:

As provided in the Commission's special rules of practice any interested person may file a petition seeking recon-

sideration of the following numbered proceedings within 20 days from the date of publication of this notice. Pursuant to section 17(8) of the Interstate Commerce Act, the filing of such a petition will postpone the effective date of the order in that proceeding pending its disposition. The matters relied upon by petitioners must be specified in their petitions with particularity.

No. MC-FC-68313. By order of December 30, 1965, the Transfer Board approved the transfer to John Edward Royer, doing business as John E. Royer, 4805 North Maryland Avenue, Portland, Oreg., 97217; of permit in No. MC-116566, issued April 28, 1958, to Lester Fisher, Jr., doing business as Lester Fisher, 9403 North Charleston Street, Portland, Oreg., authorizing the transportation of: Shingles, from Arch Cape, Oreg., to points in a specified part of California.

No. MC-FC-68325. By order of December 30, 1965, the Transfer Board approved the transfer to Neil R. Storm, doing business as Ken's Transfer, Milbank, S. Dak., of certificate of registration in No. MC-121504 (Sub-No. 1), issued August 4, 1964, to Orland Menze,

doing business as Ken's Transfer, Milbank, S. Dak., authorizing the transportation of: Property, to, from, and between Watertown, South Shore, Stockholm, Strandburg, La Bolt, Revillo, Albee, Twin Brooks, and Milbank, S. Dak. Max Greenwald, Box 103, Milbank, S. Dak., 57252, attorney for applicants.

No. MC-FC-68376. By order of December 30, 1965, the Transfer Board approved the transfer to Robert W. Ewing and Rex C. Ewing, Jr., a partnership, doing business as Ewing Bros. Auto Body, 1200 North A Street, Las Vegas, Nev., 89106, of the operating rights issued November 2, 1959, and June 7, 1965, in Certificates Nos. MC-117380 and MC-117380 (Sub-No. 1), respectively, to Wayne E. Kirch, doing business as Wayne's Auto Body Shop, 1730 South Main Street, Las Vegas, Nev., 89105, authorizing the transportation, over irregular routes, of wrecked or disabled motor vehicles and trailers, the transportation of which shall be limited to the use of wrecking equipment only as such transportation pertains to trailers designed to be drawn by passenger automobiles, between points in a described portion of Nevada, a described portion of Utah, and

points in a described portion of California, and of wrecked or disabled vehicles and trailers, by use of wrecker equipment only, between points in Mojave County, Ariz., on the one hand, and, on the other, points in a described portion of Nevada, a described portion of Utah, and a described portion of California.

No. MC-FC-68387. By order of December 30, 1965, the Transfer Board approved the transfer to Joe R. Spicer, doing business as Spicer Truck Line, 2202 Sixth Avenue North, Grand Forks, N. Dak., 58201; of certificate in No. MC-41491, issued July 3, 1947, to Kedney Warehouse Co. of North Dakota, a corporation, Ninth and University Avenue, Grand Forks, N. Dak., 58201, authorizing the transportation of: General commodities, with exceptions including household goods and commodities in bulk, between points in a specified part of Minnesota and North Dakota.

[SEAL]

H. NEIL GARSON,
Secretary.

[F.R. Doc. 66-261; Filed, Jan. 7, 1966;
8:48 a.m.]

FOURTH SECTION APPLICATIONS FOR RELIEF

JANUARY 5, 1966.

Protests to the granting of an application must be prepared in accordance with Rule 1.40 of the general rules of practice (49 CFR 1.40) and filed within 15 days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA No. 40216—*Joint motor-rail rates—Eastern Central*. Filed by the Eastern Central Motor Carriers Association, Inc., agent (No. 394), for interested carriers. Rates on property moving on class and commodity rates over joint routes of applicant rail and motor car-

riers, between points in middle Atlantic and New England territories, on the one hand, and points in middlewest and southwestern territories, on the other.

Grounds for relief—Motortruck competition.

Tariff—Supplement 2 to Eastern Central Motor Carriers Association, Inc., agent, tariff MF-ICC A-268.

FSA No. 40217—*Joint motor-rail rates—Eastern Central*. Filed by the Eastern Central Motor Carriers Association, Inc., agent (No. 395), for interested carriers. Rates on property moving on class and commodity rates over joint routes of applicant rail and motor carriers, between points in middle Atlantic and New England territories, on the one hand, and points in central states, middlewest and southwestern territories, on the other.

Grounds for relief—Motortruck competition.

Tariff—Supplement 2 to Eastern Central Motor Carriers Association, Inc., agent, tariff MF-ICC A-268.

FSA No. 40218—*Joint motor-rail rates—Eastern Central*. Filed by the Eastern Central Motor Carriers Association, Inc., agent (No. 396), for interested carriers. Rates on property moving on class and commodity rates over joint routes of applicant rail and motor carriers, between points in middle Atlantic and New England territories, on the one hand, and points in central states and middlewest territories, on the other.

Grounds for relief—Motortruck competition.

Tariff—Supplement 2 to Eastern Central Motor Carriers Association, Inc., agent, tariff MF-ICC A-268.

FSA No. 40219—*Joint motor-rail rates—Eastern Central*. Filed by the Eastern Central Motor Carriers Association, Inc., agent (No. 397), for interested carriers. Rates on property moving on class and commodity rates over joint

routes of applicant rail and motor carriers, between points in central states territory, on the one hand, and points in middle Atlantic and New England territories, on the other.

Grounds for relief—Motortruck competition.

Tariff—1st revised page 135 to Eastern Central Motor Carriers Association, Inc., agent, tariff MF-ICC A-268.

FSA No. 40220—*Joint motor-rail rates—Eastern Central*. Filed by the Eastern Central Motor Carriers Association, Inc., agent (No. 398), for interested carriers. Rates on property moving on class and commodity rates over joint routes of applicant rail and motor carriers, between points in Central States territory, on the one hand, and points in Middle Atlantic and New England territories, on the other.

Grounds for relief—Motortruck competition.

Tariff—First revised page 259 to Eastern Central Motor Carriers Association, Inc., agent, tariff MF-ICC A-268.

FSA No. 40221—*Clay to Parkersburg, W. Va.* Filed by O. W. South, Jr., agent (No. A4821), for interested rail carriers. Rates on clay, except clay commercially suitable for filling of fabric or filling or coating of paper, or for use in manufacturing of rubber and rubber articles, in carloads, from Clayburn and Wickliffe, Ky., McKenzie, Spinks, and Whitlock, Tenn., and points taking same rates, to Parkersburg, W. Va.

Grounds for relief—Market competition.

Tariff—Supplement 197 to Southern Freight Association, agent, tariff ICC S-40.

By the Commission.

[SEAL]

H. NEIL GARSON,
Secretary.

[F.R. Doc. 66-262; Filed, Jan. 7, 1966;
8:48 a.m.]

The following numerical guide is a list of the parts of each title of the Code of Federal Regulations affected by documents published to date during January.

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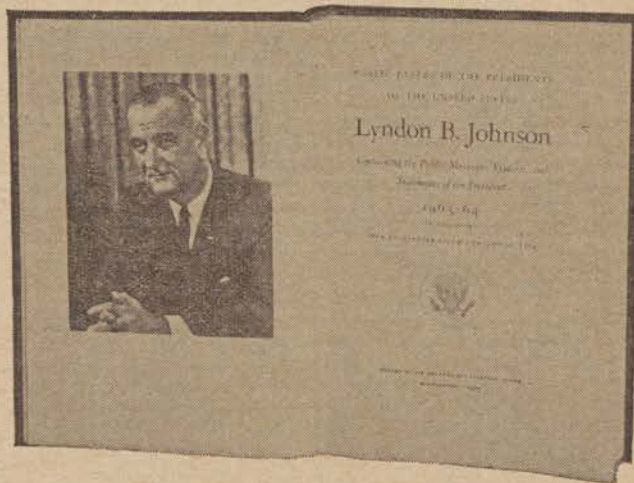
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